

Digest of Principles

12 April 2023 to 21 August 2026, classified by subject. · 23 September 2026

219 PRINCIPLES	726 CASE- APPLICATIONS	500 TAGGED CASES	500 CASES IN CORPUS	11 LEADING (10+ CASES)	17 SUBJECT CLASSES
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Drawn from the **principle_tags** field of the 500 summaries with the latest dates of judgment: **12 April 2023** (SCJ-669) through **21 August 2026** (SCJ-853). Every summary in the corpus carries a date; this cut is those 500. Authorship stamps in this cut: unstamped (336), Grok 4.6 (134), Claude Opus 4.8 (25), stencil (5). Each principle is filed once, under the subject that best describes it. A principle applied in ten or more cases is marked leading. Where a principle has more than ten case-applications, the card names ten (significant cases first) and records the remainder as *N more*. Within each class, principles are ordered by the number of case-applications, then alphabetically. Empty subject classes are omitted. An A–Z index is at the end. Significant cases are cited as **SCJ_NNNN_S**.

 Leading — 10 or more cases  Extensive — 5 to 9 cases  Recurring — 2 to 4 cases  Isolated — a single case

How to read a card: the title is the kebab-case tag, rendered in prose. The paragraph is the richest *application* recorded for that tag. Chips are the named cases that carry it, with year and court. A green chip is a *significant* decision.

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A. Statutory architecture, vires & interpretation 3 principles · 3 case-applications

How the Code is read against the Act: hierarchy, retrospectivity, headings, and ultra vires.

A-01 Code liberally construed for consumer 1 case

A disconnection application is not to be rejected for want of the prescribed format (Annexure 4.7) or the last receipt. The Code's 30-day Clause 4.14 process is to be applied in a consumer-friendly way; the application itself marks cessation of the supply relationship.

SCJ_328_S · Ghanshyam 2026 **All HC**

A-02 Rerc open access regulations vires 1 case

Not a Supply Code case — a wholesale/open-access regulatory dispute over the validity of the Rajasthan Electricity Regulatory Commission (Terms and Conditions for Open Access) Regulations, 2016, challenged by captive power plants (CPPs) and inter-state open-access consumers as ultra vires the Electricity Act, 2003..

SCJ_110 · Ramayana Ispat Pvt. Ltd. & Anr. 2025 **SC**

A-03 Statutory contract silence does not bar statutory power 1 case

General administrative-law doctrine (statutory power survives contractual silence, subject to the Indian Aluminium exception for express valid fetters) with potential cross-application to electricity tariff/circular-enhancement disputes in this corpus (cf. SCJ-128's retrospective-circular-application doctrine, SCJ-123's clause-enforcement holding).

LEAD AUTHORITIES *Indian Aluminium Co. v. Kerala State Electricity Board*; *State of Rajasthan v. J.K. Synthetics*

SCJ_134 · The State of Haryana & Ors. 2026 SC

B. Duty to supply & access to a connection 18 principles · 56 case-applications

Section 43, occupier and tenant connections, indemnity bonds, and mandamus to connect.

B-01 Clause 4.4 occupant connection on indemnity bond 34 cases

An occupant without a title deed may apply for a new connection under Clause 4.4 of the U.P. Electricity Supply Code, 2005, with an indemnity bond in the form of Annexure 4.2..

LEAD AUTHORITIES *Chandu Khamaru v. Smt. Nayan Malik*; *Seema Mansoor v. U.P. Power Corporation Ltd.*

SCJ_3296_S · Anil Kumar Singh 2023 All HC

SCJ_401_S · Guddi Kesarwani 2025 All HC

SCJ_342_S · Uma Chauhan 2025 All HC

SCJ_2203 · Sumitra Verma 2023 All HC

SCJ_558 · Procapitus Business Park Pvt. Ltd. 2024 All HC

SCJ_586 · Babli Devi 2024 All HC

SCJ_588 · Guddi Kesarwani 2024 All HC

SCJ_621 · Sharmila Prasad 2024 All HC

SCJ_623 · Arun Kumar Kashyap 2024 All HC

SCJ_624 · Kiran 2024 All HC 24 more

B-02 Direction to consider connection on furnishing 4.4 or annexure 4.2 documents 2 cases

The petitioner agreed to file either ownership documents under clause 4.4 or an Annexure 4.2 indemnity bond within two weeks. The writ was disposed by directing the Chief Executive Engineer to consider the new-connection application within two weeks of that filing, without deciding that the connection must be granted.

SCJ_3369 · Rakesh Kumar Nishad 2023 All HC

SCJ_2203 · Sumitra Verma 2023 All HC

B-03 Landlord noc refusal in dispute no bar to tenant connection 2 cases

The landlord's refusal of a no-objection certificate and his dispute of the tenancy were held no bar to the tenant's connection; on Dilip, electricity is a basic amenity and only the applicant's occupation is to be examined.

LEAD AUTHORITIES *Dilip (Dead) through LRs v. Satish & Others*

SCJ_2222_S · Amit Kumar 2023 All HC

SCJ_293 · Neelam Gupta 2026 All HC

B-04 Occupier entitled to connection on indemnity bond 2 cases

Applied in a criminal-revision setting: a tenant in occupation is entitled to an electricity connection under Clause 4.4 and Annexure 4.2; getting an additional meter in the tenanted premises through the electricity department is not Section 420 fraud. Same cluster as SCJ-115 (Seema Mansoor), SCJ-006, SCJ-212, SCJ-265.

LEAD AUTHORITIES *Seema Mansoor v. U.P. Power Corporation Ltd.*

SCJ_601_S · Harish Agrawal 2024 All HC

SCJ_342_S · Uma Chauhan 2025 All HC

B-05 Occupier entitled to connection on indemnity bond annexure 4.2 2 cases

The Court identified the Annexure 4.2 Indemnity Bond as the proforma for an occupier who cannot produce the owner's consent, and directed the petitioner to furnish that bond within two weeks if so required, after which the connection is to be provided within two further weeks.

SCJ_3296_S · Anil Kumar Singh 2023 All HC

SCJ_2859_S · Chandan Dehiya and Another 2023 All HC

B-06 Occupier must be authorised 2 cases

The right of a tenant/occupier to a connection under the Code presupposes authorised occupation; it does not extend to a person against whom an unstayed eviction decree operates. (Qualifies the tenant-occupier entitlement recognised in Anand Kumar / SCJ-006.)

LEAD AUTHORITIES *Anand Kumar v. State of U.P.*

SCJ_3291_S · Vishanu 2023 All HC

SCJ_021 · Ashok Kumar Sharma & Another 2024 All HC

B-07 Clause 4.1 fourth proviso bar on new connection for premises with outstanding dues 1 case

The respondent-Department urged the fourth proviso to Clause 4.1 of the U.P. Electricity Supply Code, 2005 as barring a fresh connection for a premises against which dues are outstanding in the name of the existing connection holder; the contention was recorded but left undecided.

SCJ_1986 · Vishun Kumar Agrawal & Anr. 2023 All HC

B-08 Duty to supply survives extinguishment of right to recover 1 case

With the erstwhile owner's dues extinguished, the licensee's arrears-bar ground fell away and it was directed to consider the resolution applicant's new-connection application.

SCJ_2225_S · Gill Polymers (through its Proprietor ... 2023 All HC

B-09 New connection disputed title indemnity bond 1 case

Disputed title of the premises is not a ground to refuse a new electricity connection. At most the licensee may take an indemnity bond under Annexure 4.2 of the Electricity Supply Code, 2005, even if the applicant is not the owner..

SCJ_334_S · Mohd. Nadeem Siddiqui 2026 All HC

B-10 New connection duty to consider 1 case

The Executive Engineer, respondent no. 2, was directed to consider the new-connection application in light of Clause 4.4(a) (i), Clause 4.39 and the order dated 26.5.2014 in Writ-C No. 28295 of 2014.

SCJ_3308_S · Om Heem Enterprises 2023 All HC

B-11 No insistence on title documents for occupier connection 1 case

The Court made clear that the power corporation shall not insist upon title documents from the petitioner-occupiers as a condition of the connection.

SCJ_2859_S · Chandan Dehiya and Another 2023 All HC

B-12 Occupier needs proof of occupancy plus indemnity bond clause 4.4 1 case

An indemnity bond under Clause 4.4 is not enough. The occupier must also furnish an occupancy certificate under Clause 4.4 read with Annexure 4.2. Until that is done, non-release of the connection is not contempt of a writ that directed supply only if formalities were completed. Same cluster as SCJ-249.

SCJ_338 · Jayant Singh 2025 All HC

B-13 Owner consent mandatory for new connection clause 4.4 1 case

A tenant in possession seeking mandamus for a new electricity connection without the landlord's NOC was not granted the connection on the writ..

SCJ_528 · Petitioner 2025 All HC

B-14 Ownership dispute no ground to withdraw occupier supply 1 case

Although respondents nos. 3 and 4 claimed ownership and challenged the petitioners' occupation, the pending dispute was held to be no ground for the corporation to withdraw the occupier's connection; the owners' remedy lay in eviction proceedings.

SCJ_2859_S · Chandan Dehiya and Another 2023 All HC

B-15 Pending new connection consider in accordance with code 1 case

The writ court did not grant the prepaid connection. It allowed the petition by directing consideration within ten days of production of a certified copy.

SCJ_3308_S · Om Heem Enterprises 2023 All HC

B-16 Pending private dispute no ground to deny supply 1 case

Rejection of the new-connection application because ownership of the shop was disputed, with Original Suit No. 121 of 2022 pending, was held unlawful. An occupier whose occupation is not denied cannot be refused a connection only on that ground.

LEAD AUTHORITIES *Division Bench judgment in Writ - C No. 28295 of 2014*

SCJ_3308_S · Om Heem Enterprises 2023 All HC

B-17 S.43 duty to supply owner or occupier correlative right 1 case

Section 43(1) was applied as casting a duty on the licensee to supply, and a corresponding right on the owner or occupier to obtain supply, on an application. The mother's obstruction did not displace that right. The Executive Engineer was directed to provide the connection.

LEAD AUTHORITIES *Chandu Khamaru v. Smt. Nayan Malik*

SCJ_3296_S · Anil Kumar Singh 2023 All HC

B-18 Section 43 duty to supply within one month 1 case

The Court recited Section 43(1) as requiring supply within one month of the application. The order it made was to provide the connection within two weeks after the Indemnity Bond.

LEAD AUTHORITIES *Chandu Khamaru v. Smt. Nayan Malik*

SCJ_3296_S · Anil Kumar Singh 2023 All HC

C. Arrears, transferee & occupier liability 14 principles · 23 case-applications

Who pays predecessor dues: premises charge, auction purchasers, landlords and directors.

C-01 Arrears run with the premises 9 cases

IMPORTANT QUALIFICATION: the K.C. Ninan arrears-run-with-premises doctrine (SCJ-037) is confined to ordinary/non-insolvency transfers; where the premises were acquired through an IBC liquidation auction and the licensee has itself submitted a claim to the Liquidator for the same dues, IBC s.238 overrides the Electricity Act/Supply Code first-charge provisions and the licensee's sole recourse is the IBC waterfall...

LEAD AUTHORITIES *Isha Marbles v. Bihar State Electricity Board*; *K.C. Ninan v. Kerala State Electricity Board*; *Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Private Ltd. & Ors.*

SCJ_535 · Aditri Agro Infratech Pvt. Ltd. 2025 **All HC**

SCJ_532 · Gaurav Gupta 2025 **All HC**

SCJ_362 · Kiran Singh 2025 **All HC**

SCJ_473 · Vinod Kumar Jaiswal And Another 2025 **All HC**

SCJ_325 · Usman Husain 2026 **All HC**

SCJ_037 · K.C. Ninan 2023 **SC**

SCJ_005 · Amir Ahmad 2025 **All HC**

SCJ_054 · Dharti Agro Industries Pvt. Ltd. 2025 **All HC**

SCJ_199 · Teena Sehgal 2026 **All HC**

C-02 Connection transfer requires clearance of arrears clause 4.44 2 cases

Widow seeking mutation of her late husband's electricity connection in her name was relegated to a Clause 4.44 application (Annexure-4.11). Writ disposed of without merits adjudication; if filed within two weeks, the application is to be decided in accordance with law within four weeks.

SCJ_452 · Naaz Fatima 2025 **All HC**

SCJ_442 · Atiya Begum 2025 **All HC**

C-03 Arrears apportioned pro rata on subdivision 1 case

The petitioner invoked Clauses 4.3(g) and (h) on the footing that a will had legally sub-divided the house, so that he owed only a share of the outstanding dues. The Court did not apply a pro-rata split. It required the Prescribed Authority to verify the will and the partition before directing payment.

SCJ_3314 · Akhilesh Patel 2023 **All HC**

C-04 Arrears bar is premises specific 1 case

Petitioner's contention that the leased premises is separate and distinct from the premises against which the lessor's dues are claimed, so the arrears bar cannot attach — framed by the Court as the moot question, left for decision.

SCJ_2211 · M.P. Singh Foundation 2023 **All HC**

C-05 Arrears follow premises not person fresh connection vs transfer 1 case

New connection to a lessee refused for the lessor's dues on the same premises; interim release ordered on an undertaking pending decision on premises identity.

SCJ_2211 · M.P. Singh Foundation 2023 **All HC**

C-06 Auction purchaser liable for predecessor dues as is where is 1 case

An auction purchaser buying on an "as is where is" basis is put to enquiry about, and takes the premises subject to, the erstwhile owner's outstanding electricity dues, which the licensee may recover from him.

LEAD AUTHORITIES *Telangana State Southern Power Distribution Co. Ltd. v. Srigdhaa Beverages*

SCJ_271 · RKG Industries LLP 2023 **All HC**

C-07 Clause 4.3 new connection barred by outstanding premises dues 1 case

The Court read Clause 4.3 as permitting a new connection only after the dues on the previous connection are satisfied, and found no illegality in rejecting the application on that ground.

SCJ_3291_S · Vishanu 2023 All HC

C-08 Clause 4.3f co extensive liability not confined to private sale 1 case

The Clause 4.3(f)(i) duty to find out and clear outstanding electricity dues to obtain a no-dues certificate is co-extensive on seller and purchaser and applies to auction/distress sales, not only private sales.

SCJ_271 · RKG Industries LLP 2023 All HC

C-09 Fresh assessment permitted on part deposit arrears remitted to superior officer 1 case

The Court permitted fresh Section 126 assessment on the petitioner depositing Rs.20 lacs within two weeks, and remitted the arrears dispute (spanning Divisions III and V) to the Superintending Engineer for decision within four weeks of objection.

SCJ_2858 · Malhotra Ice Factory 2023 All HC

C-10 Fresh connection to auction purchaser free from encumbrances 1 case

The petitioner, having bought the premises in a public auction free from all encumbrances, contended it could not be denied a fresh connection for the erstwhile owner's dues; the Court granted an interim connection on a bank guarantee but never decided the Clause 4.3 question (dismissed for want of prosecution).

SCJ_1978 · Kumar Audogic Vikas Pvt. Ltd. 2025 All HC

C-11 Interim connection on bank guarantee for disputed arrears 1 case

Interim relief took the form of a fresh connection granted on the petitioner furnishing a bank guarantee for the disputed arrears, expressly subject to the decision of the writ, with future dues to be paid.

SCJ_1978 · Kumar Audogic Vikas Pvt. Ltd. 2025 All HC

C-12 Isha marbles distinguishable where auction clause covers dues 1 case

Isha Marbles is confined to auctions with no clause dealing with electricity dues; where the auction is "as is where is" and the terms put the purchaser to notice of dues, the purchaser is liable.

LEAD AUTHORITIES *Isha Marbles v. Bihar State Electricity Board*

SCJ_271 · RKG Industries LLP 2023 All HC

C-13 No double recovery of arrears already realized from erstwhile owner 1 case

The Court observed that, the department having sought recovery from the erstwhile owner, it could receive the amount from the purchaser only if it had not already been realized from the erstwhile owner, and required a status report - guarding against double recovery.

SCJ_1978 · Kumar Audogic Vikas Pvt. Ltd. 2025 All HC

C-14 No new connection while predecessor dues outstanding clause 4.3f 1 case

Clause 4.3(f) was read as requiring the dues on the previous connection to be satisfied by the owner. The occupier's fresh-connection application failed while those dues remained.

SCJ_3291_S · Vishanu 2023 All HC

D. Insolvency interface — IBC, SICA & sick units 6 principles · 11 case-applications

Clean-slate, section 238 override, moratorium, and relief-undertaking protection.

D-01 Ibc s.238 overrides sector statutes 4 cases

Section 238 of the IBC, being a later special enactment with a non-obstante clause, overrides sectoral statutes with their own non-obstante/first-charge provisions (Electricity Act ss.173-174; also applied to the Customs Act and the Tea Act in other SC rulings) once liquidation/moratorium proceedings are triggered and the sectoral authority has participated in them.

LEAD AUTHORITIES *Ghanshyam Mishra and Sons Pvt. Ltd. v. Edelweiss Asset Reconstruction Co. Ltd.*; *Innoventive Industries Ltd. v. ICICI Bank & Anr.*; *Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat (P) Ltd.*

SCJ_2217_S · Belani Sugars LLP 2023 All HC

SCJ_054 · Dharti Agro Industries Pvt. Ltd. 2025 All HC

SCJ_157 · South East U.P. Power Transmission Com... 2026 All HC

SCJ_160 · Reliance Projects and Property Managem... 2026 All HC

D-02 Resolution plan extinguishes pre cirp electricity dues clean slate 3 cases

The pre-CIRP electricity dues of Sikka Papers, not part of the approved plan and never claimed by the licensee, stood extinguished, giving the resolution applicant a clean slate for a new connection.

LEAD AUTHORITIES *Ghanshyam Mishra and Sons Pvt. Ltd. v. Edelweiss Asset Reconstruction Company Ltd.*; *Ghanashyam Mishra & Sons (P) Ltd. v. Edelweiss Asset Reconstruction Co. Ltd.*; *CoC of Essar Steel India Ltd. v. Satish Kumar Gupta*

SCJ_2225_S · Gill Polymers (through its Proprietor ... 2023 All HC

SCJ_157 · South East U.P. Power Transmission Com... 2026 All HC

SCJ_160 · Reliance Projects and Property Managem... 2026 All HC

D-03 Ibc clean slate distinguished from sarfaesi auction 1 case

The IBC 'clean slate' (Ghanshyam Mishra) applies to an NCLT transfer, distinguishing the SARFAESI bank-auction line (Srigdhaa Beverages) under which an auction-purchaser may bear the previous owner's electricity dues.

LEAD AUTHORITIES *Telangana State Southern Power Distribution Co. Ltd. v. Srigdhaa Beverages*

SCJ_2217_S · Belani Sugars LLP 2023 All HC

D-04 Ibc liability crystallises at resolution plan effective date 1 case

The resolved debtor's liability crystallises from the plan's 'effective date' (actual transition of control), not the mere date of NCLT approval, especially where implementation was delayed by litigation; time excluded in litigation benefits the debtor, not the statutory creditors.

SCJ_160 · Reliance Projects and Property Managem... 2026 All HC

D-05 Ibc s.238 overrides electricity act recovery mechanism in liquidation 1 case

Once liquidation commences, IBC s.238 overrides the Electricity Act's ss.173/174 non-obstante recovery provisions and the Supply Code's Clause 4.3/6.15 mechanism; a licensee cannot independently attach/auction a corporate debtor's assets for electricity dues outside the IBC's collective process — directly confirms and elevates to Supreme Court authority the qualification to the arrears-run-with-the-premises...

LEAD AUTHORITIES *Sundaresh Bhatt, Liquidator of ABG Shipyard v. Central Board of Indirect Taxes and Customs*; *Duncans Industries Ltd. v. AJ Agrochem*

SCJ_100 · Paschimanchal Vidyut Vitran Nigam Ltd. 2023 SC

D-06 Section 238 ibc overrides supply code clause 4.3f 1 case

Section 238 gave the IBC overriding effect over the Clause 4.3(f) arrears bar, which could not defeat the resolution applicant's new connection.

LEAD AUTHORITIES *Ghanshyam Mishra and Sons Pvt. Ltd. v. Edelweiss Asset Reconstruction Company Ltd.*

SCJ_2225_S · Gill Polymers (through its Proprietor ... 2023 All HC

E. Premises, site, estimates, feeders & lines 4 principles · 13 case-applications

Independent feeders, tapping, change of site, estimates, and landowner objections.

E-01 Clause 4.5d landowner objection to supply line 6 cases

A landowner objecting to an electricity supply line over his land has a right under Clause 4.5(d) of the Electricity Supply Code, 2005. The District Magistrate (or other authorised officer) must resolve the objection under Clause 3 of the Works of Licensees Rules, 2006..

SCJ_582 · Shiv Shankar Pandey 2024 All HC

SCJ_545 · Mewati And Anr. 2024 All HC

SCJ_120 · Shivmahraj 2024 All HC

SCJ_104 · Priy Shankar Pandey 2024 All HC

SCJ_169 · Abhimanyu Singh 2026 All HC

SCJ_282 · Kumar Ajay Singh 2026 All HC

E-02 Single point to multipoint requires 51 percent consumers 4 cases

Conversion of an existing single-point supply in a multi-storey building to individual connections requires an application by 51% of the consumers drawing from that single point (Electricity Supply Code (Thirteenth Amendment), 2018). A shop-buyer with 10% support, whose sale deed accepted the vendor's one-point connection and a prepaid meter, has no cause of action for a direct connection. Writ dismissed.

SCJ_355_S · Mohammad Afsar Khan And Another 2025 All HC

SCJ_2854 · Apex Dream Homes Pvt. Ltd. 2023 All HC

SCJ_2228 · Apex Dream Homes Pvt. Ltd. 2023 All HC

SCJ_3290 · Mr. Bunt & 15 Others 2023 All HC

E-03 Clause 4.9 single point to multipoint 2 cases

Prima facie, no provision empowers the licensee to compel a society/residents to replace a single-point connection with a multi-point connection; interim protection was granted continuing the single-point connection.

SCJ_2854 · Apex Dream Homes Pvt. Ltd. 2023 All HC

SCJ_3290 · Mr. Bunt & 15 Others 2023 All HC

E-04 Sharing of consumer funded transformer 1 case

A subsequent consumer may be supplied from a transformer installed at another consumer's expense. The High Court accepted that para 4.29 of the U.P. Electricity Supply Code, 2005 permits such a connection, declined to interfere, and disposed of the writ without prejudice to other remedies..

SCJ_520 · Ram Magan Chauhan @ Ram Magan 2025 All HC

F. Security, load, tariff & regulatory economics 5 principles · 26 case-applications

Additional security, load change, tariff orders, rebates, and Commission-determined charges.

F-01 Additional security 16 cases

Allahabad High Court dismissed a writ challenging UPERC's 8 May 2013 additional-security demand on industrial consumers above 45 kW, and the bill applying that tariff, because the issue stood decided against the consumer in *Dev Prayag Paper Mill*, 2017 (3) ALJ 497..

LEAD AUTHORITIES *M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P. & Ors.*

SCJ_999 · Shree Bhawani Mills 2023 **All HC**

SCJ_829 · Bhadohi Hotels Ltd. 2023 **All HC**

SCJ_369 · Shri Ganga Paper Mills Pvt. Ltd. 2025 **All HC**

SCJ_1194 · Siddheshwari Industries Pvt. Limited 2025 **All HC**

SCJ_1157 · R.D. Papers Ltd. 2025 **All HC**

SCJ_1179 · Additional security under clause 4.20 ... 2025 **All HC**

SCJ_1195 · J.P.S. Steels Pvt. Ltd. 2025 **All HC**

SCJ_1196 · Shree Behari Forgings Pvt. Ltd. 2025 **All HC**

SCJ_1292 · Super Tannery Ltd. 2025 **All HC**

SCJ_3153 · Wadilal Industries Ltd. 2025 **All HC**

6 more

F-02 Licensee cannot alter commission determined tariff 5 cases

Minimum monthly/fixed charges form part of the Commission-notified Tariff Order under Section 24 of the Reforms Act, 1999 and paragraphs 3.8/3.9 of the Code. The licensee cannot waive them on a consumer request, and the Ombudsman cannot direct the licensee to ignore the Tariff Order.

LEAD AUTHORITIES *U.P. Power Corporation Ltd. v. Ombudsmen and 2 others (Writ-C No. 1003603 of 2008, 21.03.2023)*

SCJ_490_S · U.P. Power Corp. Ltd. Through Executiv... 2025 **All HC**

SCJ_491_S · U.P. Power Corp. Ltd. Through Executiv... 2025 **All HC**

SCJ_492_S · U.P. Power Corp. Ltd. Through Executiv... 2025 **All HC**

SCJ_493_S · U.P. Power Corp. Ltd. Through Executiv... 2025 **All HC**

SCJ_494_S · U.P. Power Corp. Ltd. Through Executiv... 2025 **All HC**

F-03 Security deposit is advance payment not debt 3 cases

Challenge to additional security under s.47 of the Electricity Act, 2003 read with Supply Code cl. 4.20 was kept pending on affidavits with interim protection on non-cash security. In 2023 the writ was dismissed in default and the interim order vacated, without deciding the prepaid-meter objection.

SCJ_369 · Shri Ganga Paper Mills Pvt. Ltd. 2025 **All HC**

SCJ_842 · Suresh Furnace Pvt. Ltd. 2023 **All HC**

SCJ_852 · Vardhman Casting Pvt. Ltd. 2026 **All HC**

F-04 Legal profession not commercial activity for tariff 1 case

Establishes that the legal profession, being a professional (not commercial) activity, cannot be billed under the non-domestic/commercial LMV-2 tariff merely because the current rate schedule lacks an express 'lawyers' chambers' category and a residuary clause would otherwise sweep it into LMV-2 — an important tariff-classification precedent extending Clause 3.3(e)'s residential-professional-use exemption to...

LEAD AUTHORITIES *Dr. D.M. Surti v. State of Gujarat; M.P. Electricity Board and Others v. Shiv Narayan and Another; V. Sasidharan v. M/s Peter and Karunakar*

SCJ_133 · Tehsil Bar Association, Sadar Tehsil P... 2023 **All HC**

F-05 Protective load charges clause 4.27 challenge 1 case

A demand of 'protective load charges' under Clause 4.27 of the U.P. Electricity Supply Code, 2005 was challenged on the ground that the consumer made no application or agreement for protective load; the Department asserted a written application was made. The dispute (a question of fact) was not decided.

SCJ_2190 · Ganga Dairy 2025 **All HC**

G. Metering 7 principles · 10 case-applications

Clause 5.6 testing, defective and slow meters, check meters, and meter-reading disputes.

G-01 Meter dispute must exhaust clause 5.6 before writ 2 cases

Where a consumer disputes bill correctness, Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 requires a check meter parallel to the main meter and the bill to be made from check-meter consumption, with readings recorded 7–15 days after installation..

SCJ_430_S · Akriti Food Industry LLP 2025 **All HC**

SCJ_310 · Retrospective OMF charges — unreasoned... 2026 **All HC**

G-02 Meter reading dispute clause 6.5 2 cases

A bill based on check-meter readings compared with an alleged defective main meter is a meter-reading/billing-correctness dispute for Clause 6.5, not a writ determination of whether independent laboratory testing or presence at meter removal was required.

SCJ_669 · Mohan Electrocasting Pvt. Ltd. And Ano... 2023 **All HC**

SCJ_551 · Hotel Pride Inn 2024 **All HC**

G-03 Prepayment meter exemption conditional on availability 2 cases

Writ by a consumer who had opted for a pre-payment meter, challenging an additional-security demand under section 47(2) of the Electricity Act, 2003 and the vires of Electricity Supply Code, 2005 clause 4.20(l) vis-à-vis section 47(5), dismissed as not pressed..

SCJ_930 · Moolchand Steels Pvt. Ltd. 2025 **All HC**

SCJ_948 · Shri Jai Balaji Rolling Mills Limited 2025 **All HC**

G-04 Clause 4.15 ht eht independent entry to meter 1 case

Clause 4.15(b) obliges HT/EHT consumers to provide independent entry to the meter or metering cubicle; Clause 4.15(a) lets the licensee fix the point of supply so meters remain unobstructed. An EE order to build a cubicle near the main gate with independent access is intra vires; a plea that access already exists goes to the EE, not the writ court.

SCJ_670 · Atul Industrial Corporation And Another 2023 **All HC**

G-05 Connection must be released with a meter 1 case

In a gated colony with prepaid house meters, the licensee may, under clause (j) of amended Part A of the Electricity Supply Code (Thirteenth Amendment), 2018, give individual connections on application and install a reference meter..

SCJ_259 · Devanshu Bose 2026 **All HC**

G-06 Meter holder liable notwithstanding tenant in occupation 1 case

The registered consumer in whose name the meter stands is liable for the charges; Clause 2.2(oo)'s 'Occupier' definition does not shift liability to a tenant in occupation. Cf. the definitional Clause 2.2 applied in SCJ-072.

SCJ_1271 · Dinesh Kumar Gupta 2025 **All HC**

G-07 No meter billing on three months average clause 5.7 1 case

Clause 5.7(d) was recited as confining defective-meter billing between last reading and replacement to the average of three billing cycles; the Court asked the licensee to justify a four-year additional demand and stayed recovery, but never decided whether that average rule barred the 7.2.2015 bill.

SCJ_3161 · Bundelkhand University Jhansi Thru' It... 2025 **All HC**

H. Billing, payment, instalments & limitation 20 principles · 193 case-applications

Clause 6.5 objections, 6.14 instalments, first-due, and the two-year bar (s.56 / Cl. 6.15).

H-01 Billing objection to executive engineer under 6.5 149 cases

An Executive Engineer's Clause 6.5 order on a billing objection, being devoid of reasons and showing no application of mind, was quashed and remitted for a fresh reasoned decision after hearing, within two months.

SCJ_451_S · Shree Badri Kedar Papers Private Limit... 2025 **All HC**

SCJ_385_S · Swabhiman Breweries Private Limited 2025 **All HC**

SCJ_669 · Mohan Electrocasting Pvt. Ltd. And Ano... 2023 **All HC**

SCJ_2032 · Javed Ahmad Khan 2023 **All HC**

SCJ_550 · Nagesh Pati Tripathi 2024 **All HC**

SCJ_584 · Sharafat Ulla (since deceased) 2024 **All HC**

SCJ_563 · Deo Dutt Kumar 2024 **All HC**

SCJ_555 · Super Texcones 2024 **All HC**

SCJ_551 · Hotel Pride Inn 2024 **All HC**

SCJ_575 · Pancham 2024 **All HC** 139 more

H-02 Installment payment clause 6.14 15 cases

Recall application seeking installment payment of dues rejected; consumers left to apply under clause 6.14.

SCJ_3315_S · Jai Jagdamba Metalloys Ltd. 2023 **All HC**

SCJ_2685 · Julfkar 2023 **All HC**

SCJ_3301 · Bhanu Dutt Pandey 2023 **All HC**

SCJ_389 · Sunita 2025 **All HC**

SCJ_413 · Subodh Gautam Aarya Rice Mile 2025 **All HC**

SCJ_408 · Ritesh Singh 2025 **All HC**

SCJ_354 · Sandhya Kumari 2025 **All HC**

SCJ_515 · Rajendra Nath Pal 2025 **All HC**

SCJ_387 · Spencer Retail Limited 2025 **All HC**

SCJ_386 · Satya Prakash Katara 2025 **All HC** 5 more

H-03 Bill correction clause 6.5 4 cases

Settlement of the outstanding and correction of the electricity bills were treated as a Clause 6.5 application, to be supported by documents and proof of payment. The Court did not itself correct the bills.

SCJ_3313 · Maheshwari Flour Mills, Sitapur 2023 **All HC**

SCJ_3306 · P.S. Cold Storage (A Unit of Taj Dairy... 2023 **All HC**

SCJ_3297 · Sarasth Propbuild Pvt. Ltd. 2023 **All HC**

SCJ_3299 · Shankar Lal 2025 **All HC**

H-04 Clause 6.15 two year bar mandatory licensee duty to act 3 cases

A licensee cannot recover, via a fresh bill, sums that became due more than two years earlier for its own metering error; the s.56(2)/Clause 6.15 bar applies.

SCJ_477_S · Executive Engineer, Dakshinanchal Vidy... 2025 **All HC**

SCJ_458 · Sewa Suraksha Sahkari Awas Samiti Ltd. 2025 **All HC**

SCJ_263 · Zaz Leather Complex Pvt. Ltd. 2023 **All HC**

H-05 Clause 6.5 statutory remedy disputed bill 3 cases

The dispute over the reduced bill of Rs 2,47,75,915 on connection no. 3554, and over the recovery certificate dated 07.11.2022, was left to a complaint under Clause 6.5 rather than decided in the writ.

SCJ_3306 · P.S. Cold Storage (A Unit of Taj Dairy... 2023 **All HC**

SCJ_3297 · Sarasth Propbuild Pvt. Ltd. 2023 **All HC**

SCJ_3299 · Shankar Lal 2025 **All HC**

H-06 Two year limitation recovery of electricity arrears 3 cases

The two-year bar in Section 56(2) did not apply to the bill arrears because they had been continuously shown as recoverable. Regular notices to pay, including a notice under Rule 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, were treated as that continuous showing. The plea drawn from Prem Cottex was rejected. The Court treated the point as considered in Rahamatullah Khan and...

LEAD AUTHORITIES *Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Limited v. Rahamatullah Khan alias Rahamjulla; K.C. Ninan v. Kerala State Electricity Board; Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Limited v. Rahamatullah Khan alias Rahamujlla*

SCJ_3326_S · Munna Lal 2024 **All HC**

SCJ_3288 · Vijendra Singh 2023 **All HC**

SCJ_3276 · Madhyanchal Vidyut Vitran Nigam Ltd. a... 2026 **All HC**

H-07 Clause 6.5 representation executive engineer 2 cases

The application is to be made to the Executive Engineer. The operative paragraph treats that application as one made to respondent no. 5, who is to consider and decide it.

SCJ_3313 · Maheshwari Flour Mills, Sitapur 2023 **All HC**

SCJ_3316 · Karan Singh 2024 **All HC**

H-08 Clause 6.5b quantification dispute 2 cases

A dispute solely over quantification of a demand is relegated to the Clause 6.5B authority for a reasoned determination, rather than being adjudicated in writ jurisdiction.

SCJ_534 · Petitioner 2025 **All HC**

SCJ_075 · Madarsa Dargah Aaliya Islamiya Shareef... 2023 **All HC**

H-09 Arrears demand quashed for non consideration of objections clause 6.5 1 case

The petitioner's objections against the bills had not been considered while passing the impugned order; the Court quashed the arrears demand and directed that the objections be considered (under Clause 6.5) and the arrears dispute decided by the Superintending Engineer.

SCJ_2858 · Malhotra Ice Factory 2023 **All HC**

H-10 Billing cause of action 1 case

Writ against an alleged incorrect electricity bill dismissed. Petitioner had earlier been redirected to complain under the U.P. Electricity Supply Code, 2005; the resulting 24 April 2025 letter confirmed no dues only for November 2023–January 2024 cycles, and the 10 April 2025 bill had already been paid..

SCJ_393 · Ashwani Kumar 2025 **All HC**

H-11 Billing dispute question of fact executive engineer clause 6.5 1 case

Whether electricity charges were payable for the period after supply was allegedly disconnected was treated as a question requiring adjudication, and was sent to the Executive Engineer under Clause 6.5 rather than decided in the writ.

SCJ_3316 · Karan Singh 2024 **All HC**

H-12 Clause 6 15b read with section 56 not independent limitation 1 case

Para 6.15(b) of the U.P. Electricity Supply Code, 2005 was held to take colour from Section 56(1) and not to impose a stand-alone two-year limitation, even in a theft case. Same Clause 6.15 cluster as SCJ-113, SCJ-477.

SCJ_1264 · Joginder Singh 2023 **All HC**

H-13 Clause 6.5 objection must be in proper form 1 case

A 05.09.2022 application seeking One Time Settlement, with no endeavour to have the bill corrected under para 6.5, is not a Clause 6.5 objection. The Executive Engineer was not in contempt for not treating it as one; OTS is a government policy availed on UP.ENERGY.IN.

SCJ_544 · Vijay Shukla 2024 All HC

H-14 Clause 6.5 pending representation to be decided 1 case

On the 40% deposit, the Clause 6.5 application is to be considered within two months in accordance with law, current bills continuing, with no coercive action for that period or until the decision.

SCJ_3297 · Sarasth Propbuild Pvt. Ltd. 2023 All HC

H-15 Fresh bill distinguished from supplementary bill for s.56(2) 1 case

The relaxation for a supplementary bill (limitation running from discovery of a bona fide mistake) does not extend to a fresh bill for over two years; Clause 6.15 was not addressed in the Ajmer Vidyut line.

LEAD AUTHORITIES *Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan*

SCJ_263 · Zaz Leather Complex Pvt. Ltd. 2023 All HC

H-16 Instalment facility clause 6.14 for financial distress 1 case

Financial distress was the only reason urged for further time after the Ombudsman had already fixed installments. No audited accounts or other document of the crisis was annexed, so the plea did not justify interference under Articles 226 and 227.

SCJ_3315_S · Jai Jagdamba Metalloys Ltd. 2023 All HC

H-17 Lps not chargeable on revised bill clause 6.5 1 case

On the licensee's admission that a revised bill of outstanding dues had been raised together with late payment surcharge, and it not being a theft case, the Court held that surcharge is not chargeable under clause 6.5 of the U.P. Electricity Supply Code, 2005 and directed that it shall not be charged. The consumer's undertaking to pay the electricity dues was accepted and the writ was disposed of on that basis.

SCJ_3283_S · Kamlesh Tiwari 2023 All HC

H-18 Recovery time barred two years after permanent disconnection 1 case

The connection was permanently disconnected in 2004 and the consumer used no electricity thereafter. A later bill, reduced by the department from Rs.18,68,845 to Rs.47,273.94, was held not recoverable under Clause 6.15. The consumer was held not liable to pay any amount and the recovery certificate was quashed. This is a final quashing, not a prima facie stay.

SCJ_3307_S · Bhanu Pratap 2023 All HC

H-19 Supplementary demand for bona fide mistake not barred by s.56 2 1 case

Counsel relied on Rahamatullah Khan, (2020) 4 SCC 650, paragraph 9.2, as recited by the Court: where a mistake could not have been discovered with reasonable diligence, limitation starts on discovery. The licensee attributes non-recovery to complicity of employees. The Court did not find a mistake, did not treat the 2020 bill as a supplementary demand outside the bar, and did not decide the point.

LEAD AUTHORITIES *Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Limited v. Rahamatullah Khan alias Rahamujlla*

SCJ_3276 · Madhyanchal Vidyut Vitran Nigam Ltd. a... 2026 All HC

H-20 Two year limitation recovery of arrears clause 6.15b 1 case

The petitioner's plea that Clause 6.15 bars recovery of anything for a period prior to two years of the billing was accepted after the Court set out Clause 6.15(b). The recovery certificate was quashed in the writ; the consumer was not relegated to a billing authority.

SCJ_3307_S · Bhanu Pratap 2023 All HC

I. Disconnection, reconnection & restoration 8 principles · 13 case-applications

Permanent disconnection, notice, and restoration on deposit or bank guarantee.

I-01 Clause 4.37 4.38 licensee empowered to permanently disconnect 5 cases

After temporary disconnection, Clauses 4.37(a) and 4.38 empower the licensee to move to permanent disconnection if the cause is not removed within six months; that power is the licensee's, and a bill-disputing consumer cannot compel its exercise in writ.

SCJ_595 · Satish Kumar @ Yatish Sharma 2024 All HC

SCJ_357 · Sagufta Ishrar 2025 All HC

SCJ_447 · Petitioner 2025 All HC

SCJ_587 · Bipin Kumar Tripathi 2026 All HC

SCJ_281 · Parvati Devi 2026 All HC

I-02 Reconnection available after permanent disconnection clause 4.39 2 cases

Reconnection of the permanently disconnected prepaid supply was not available. Clause 4.39 was held to prohibit reconnection and to require a fresh application; the licensee's plea that permanent disconnection itself barred a new connection was rejected because the petitioner had applied for a new connection.

SCJ_3308_S · Om Heem Enterprises 2023 All HC

SCJ_609 · Manoj Kumar 2024 All HC

I-03 Disconnection framework paras 4 36 to 4 38 for non payment 1 case

The petitioner relied on the Code's graduated non-payment framework (temporary disconnection, minimum charges, permanent disconnection after six months) to attack the recovery notice.

SCJ_2641 · Mohammad Nayeem Khan 2025 All HC

I-04 Interim restoration on part payment pending assessment challenge 1 case

Pending the Clause 5.6 challenge to a Rs. 31,73,973 CT-reverse difference bill, supply was directed to be restored on deposit of Rs. 10 lakhs, with future bills payable as they fall due; that interim was later extended after restoration of the writ.

SCJ_3101 · M.D. Plastic 2025 All HC

I-05 Interim restoration on security pending fresh assessment 1 case

Where a defective assessment is set aside for procedural non-compliance, the Court may order interim restoration of supply on the consumer furnishing security, subject to the outcome of a properly conducted fresh assessment.

SCJ_087 · Mrs Rajendra Kumar Sharma 2024 All HC

I-06 No coercive eviction through disconnection of utility services 1 case

The Court held that no law permits an owner to disconnect the municipal services of an occupier to force him into inhumane conditions and coercively evict him; eviction must be in accordance with law.

SCJ_2859_S · Chandan Dehiya and Another 2023 All HC

I-07 Notice required before permanent disconnection 1 case

Permanent disconnection of electricity supply — even where grounded in an allegation of unauthorized use — requires prior notice/show-cause opportunity under the Supply Code; disconnection without notice is arbitrary and unauthorized, warranting reinstatement without prejudice to a subsequent lawful show-cause process.

SCJ_108 · Raju 2024 **All HC**

I-08 Permanent disconnection procedure governed by clause 4.38 1 case

The Court called on respondent no. 3 to explain why temporary disconnection under Clause 4.36, followed by permanent disconnection under Clause 4.38, was not effected after the transformer burnt and the boring failed in 1995. It did not hold that those clauses required disconnection on these facts, and it did not apply the permanent-disconnection procedure.

SCJ_3288 · Vijendra Singh 2023 **All HC**

J. Unauthorised use (s.126) & assessment 23 principles · 103 case-applications

What is UUE, the 1.5× rate, notice and hearing, provisional and final assessment.

J-01 Opportunity before final assessment 36 cases

The impugned notice demanded deposit of the assessed amount and compounding fee without giving the consumer any opportunity to file objections or be heard; Clause 6.8(b)(i)/(c)(i) require fifteen days' clear notice, a hearing, and a speaking final order before assessment.

SCJ_2215_S · Devpati Devi 2024 **All HC**

SCJ_3325_S · Nishu Devi 2024 **All HC**

SCJ_619_S · Ram Prasad Gupta 2024 **All HC**

SCJ_351_S · S. Milan Agro Industries & 2 Others 2025 **All HC**

SCJ_3319 · Pawan Kumar Sharma 2024 **All HC**

SCJ_3323 · Firdaus Begam 2024 **All HC**

SCJ_538 · Sunil Pandey 2024 **All HC**

SCJ_615 · Suresh Chander 2024 **All HC**

SCJ_464 · Anil Suhala 2025 **All HC**

SCJ_3318 · Maa Durga Dhaba 2025 **All HC**

26 more

J-02 S.126 procedural strictness notice and hearing 16 cases

A final assessment under s.126 must engage with the consumer's objections and record findings after a fixed hearing date, per Clauses 6.8/8.1; failure to do so vitiates the assessment and any recovery founded on it — reinforcing the procedural-strictness line already tracked in this corpus for theft/final-assessment orders (e.g. SCJ-069, SCJ-071).

LEAD AUTHORITIES *Ashok Kumar v. State of U.P.*; *A.K. Kraipak v. Union of India*

SCJ_644_S · Mahavir Iron Foundry And Another 2023 **All HC**

SCJ_2206_S · Prem Steels Pvt. Limited 2023 **All HC**

SCJ_585 · Praveen Kumar @ Praveen Chauhan 2024 **All HC**

SCJ_617 · No interference with Section 126 provi... 2024 **All HC**

SCJ_615 · Suresh Chander 2024 **All HC**

SCJ_352 · Saurabh Agarwal 2025 **All HC**

SCJ_497 · Saroj Agarwal 2025 **All HC**

SCJ_329 · Gauri Prasad 2026 **All HC**

SCJ_567 · Jaswant Nagar Cold Storage Pvt Ltd 2024 **All HC**

SCJ_569 · Uttam Singh 2024 **All HC**

6 more

J-03 6.8 procedure mandatory 8 cases

Clause 6.8 was applied as a mandatory notice requirement. Seven days' clear notice, and a final bill issued without a hearing date, did not satisfy it.

LEAD AUTHORITIES *Ram Bahadur v. State of U.P.*

SCJ_3285_S · Geeta Sharma 2023 All HC

SCJ_3286_S · Sardar Singh 2023 All HC

SCJ_3325_S · Nishu Devi 2024 All HC

SCJ_3319 · Pawan Kumar Sharma 2024 All HC

SCJ_3323 · Firdaus Begam 2024 All HC

SCJ_3318 · Maa Durga Dhaba 2025 All HC

SCJ_3191 · Chaudhary Bhoop Singh Cold Storage (P)... 2023 All HC

SCJ_3243 · Star Agro 2025 All HC

J-04 Clause 6.8 hearing procedure mandatory before uue conclusion 8 cases

Recovery citations issued without a final assessment order under clause 6.8 of the U.P. Electricity Supply Code, 2005 cannot stand. Where the licensee concedes that no final assessment was passed, the recoveries are quashed and the consumer is to be given a personal hearing before any final assessment.

SCJ_559_S · Harbansh Yadav 2024 All HC

SCJ_367_S · Sandeep Tiwari 2025 All HC

SCJ_376_S · Dev Cold Storage Pvt. Ltd. 2025 All HC

SCJ_598 · Sangram Singh Yadav 2024 All HC

SCJ_502 · Suman Shukla 2025 All HC

SCJ_429 · Malkhan Singh 2025 All HC

SCJ_3287 · Girdhari Das Agarwal 2023 All HC

SCJ_356 · Afzal Khan 2025 All HC

J-05 Assessment must engage objections with reasons 4 cases

As in the connected SCJ-273, the assessing authority did not consider the consumer's objections. The 23.10.2007 assessment and consequential orders were quashed and remitted for a fresh order under the Code after considering the objections.

LEAD AUTHORITIES *Vikas Yadav v. State of U.P. and Another*

SCJ_315_S · Kamakhya Steels Pvt. Ltd. & Another 2026 All HC

SCJ_3282 · Vikas Yadav 2023 All HC

SCJ_352 · Saurabh Agarwal 2025 All HC

SCJ_273 · Kamakhya Steels Pvt. Ltd. 2026 All HC

J-06 Assessment quashed for breach of clause 6.8 procedure 4 cases

The impugned assessment orders were quashed as illegal because the Clause 6.8 r/w s.126 procedure had not been followed, as confirmed by the licensee's own inquiry.

SCJ_3286_S · Sardar Singh 2023 All HC

SCJ_3302_S · Radhey Shaym 2023 All HC

SCJ_3303_S · S.A. Enterprises 2023 All HC

SCJ_2634_S · Premveer Shah 2024 All HC

J-07 Para 6.8 non compliance vitiates assessment and recovery 4 cases

Undisputed non-compliance with Clause 6.8(c)(i) led the Court to quash both the final assessment and the recovery citation dated 19.08.2023.

SCJ_3285_S · Geeta Sharma 2023 All HC

SCJ_3286_S · Sardar Singh 2023 All HC

SCJ_3302_S · Radhey Shaym 2023 All HC

SCJ_3303_S · S.A. Enterprises 2023 All HC

J-08 Provisional assessment hearing 6.8b 3 cases

A fifteen-day window for objections, without a date and time of hearing fixed in the provisional assessment notice, was treated as short of Clause 6.8(b)(i). Department counsel's 16 May concession that recovery would be withdrawn was not carried out; on 18 May he said the notice conformed to law. No hearing was directed to be held, and withdrawal supervened.

SCJ_3285_S · Geeta Sharma 2023 All HC

SCJ_3286_S · Sardar Singh 2023 All HC

SCJ_3287 · Girdhari Das Agarwal 2023 All HC

J-09 Assessment must be by ee distribution not ee revenue 2 cases

A revised assessment bill and demand notice issued in purported exercise of s.135 read with clause 6.8(c) by the Executive Engineer (Revenue) were quashed. The power to pass the assessment lies with the Executive Engineer (Distribution).

SCJ_375_S · Chakradhari Cold Storage Pvt. Ltd. 2025 All HC

SCJ_478_S · R.D. Ice & Cold Storage (P) Ltd. 2025 All HC

J-10 Interim stay of electricity recovery pending final assessment 2 cases

On the order sheet dated 18.10.2024, recording a provisional-assessment notice of 1.3.2024 and no final-assessment order, only a recovery notice treating the provisional assessment as final, the Court kept recovery on the impugned notice in abeyance and directed the Managing Director to examine the procedural irregularity under the U.P. Electricity Supply Code, 2005. The abeyance was interlocutory. On 9.12.2024...

SCJ_3317 · Pravesh Kumar 2024 All HC

SCJ_3304 · Smilan Agro Industries & 2 Others 2025 All HC

J-11 No coercive action until final assessment 2 cases

On 18 April 2024 the Court directed that, until the final assessment order is passed, no coercive action be taken against the petitioner to realise any amount on the basis of the provisional-assessment notice.

SCJ_3323 · Firdaus Begam 2024 All HC

SCJ_560 · Rajesh Yadav 2024 All HC

J-12 No demand or recovery before final assessment order 2 cases

The Executive Engineer's affidavit showed that no final assessment order existed and that the demand notice had been issued straightway. The recovery could not be sustained on that footing.

SCJ_2635_S · Dinesh Chandra 2023 All HC

SCJ_3286_S · Sardar Singh 2023 All HC

J-13 Provisional and final assessment cannot be simultaneous 2 cases

After a provisional assessment the authority must give the meter-holder notice to object before a final assessment; a simultaneous provisional-cum-final assessment is treated as merely provisional and reopened. Same 126(3) objection-stage line as SCJ-032, SCJ-898.

SCJ_3325_S · Nishu Devi 2024 All HC

SCJ_1271 · Dinesh Kumar Gupta 2025 All HC

J-14 126 vs 135 distinct fields 1 case

The petitioner relied on paragraphs 15, 16, 17 and 22 of Executive Engineer v. M/s Sri Seetaram Ricemill for a distinction between Sections 126 and 135, and said the licensee's authorities were not attracted because the case was one of theft. The Court did not decide that distinction. The writ was dismissed as withdrawn.

LEAD AUTHORITIES *The Executive Engineer v. M/s Sri Seetaram Ricemill*

SCJ_3293 · Vishal Chawla 2023 All HC

J-15 Demand notice on provisional assessment is illegal 1 case

A bare demand-cum-recovery notice, defended as a 'provisional assessment' or 'summons' but in substance directing deposit on pain of District Magistrate/Collector recovery, is illegal for want of the Section 126 / Clause 6.8 procedure.

SCJ_2215_S · Devpati Devi 2024 AII HC

J-16 Deposit for interim restoration abides by fresh section 126 assessment 1 case

On 3.2.2021 the Court directed restoration of Account No. 7803579548 / Service connection No. MV 176965 on deposit of Rs 5,00,000 within one month, the connection having been disconnected since 06.09.2020. The deposit was not stated to abide a fresh Section 126 assessment, and the 4.8.2025 disposal did not revisit the interim.

SCJ_3243 · Star Agro 2025 AII HC

J-17 Ex parte s.126 assessment requires hearing before recovery 1 case

A recovery certificate founded on an ex-parte provisional s.126 assessment, made without following the Supply Code's assessment/hearing procedure, cannot be coercively enforced until the consumer is given a hearing and a reasoned final assessment is passed.

SCJ_084 · Mohd Usman Ansari 2025 AII HC

J-18 Excess load not unauthorised use 1 case

A successive writ seeking reduction of sanctioned load from 32 kVA to 5 kVA and a declaration that clause 4.41(a)(iv) of the U.P..

SCJ_456 · Shahnaj Begum 2025 AII HC

J-19 Provisional assessment objection before recovery 1 case

The notice provided for straightaway recovery, and for no separate final-assessment order, if no objection was filed. The Court called for the provision authorising that course, permitted objections, and on disposal forbade coercive realisation on the provisional notice until a final assessment under the Supply Code.

SCJ_3323 · Firdaus Begam 2024 AII HC

J-20 S.126 assessing officer must personally inspect 1 case

Section 126 requires the assessing officer to conduct the inspection and then provisionally assess. A provisional assessment by the Executive Engineer founded on a Junior/Assistant Engineer's checking report is set aside; the licensee may initiate assessment afresh in accordance with that procedure.

LEAD AUTHORITIES *Executive Engineer v. M/s Sri Seetaram Rice Mill*

SCJ_380_S · Satyam Shukla 2025 AII HC

J-21 S.126 two stage hearing uue conclusion then quantum 1 case

Ashok Kumar para 58 applied: opportunity before concluding unauthorised use (which confers jurisdiction to issue the provisional notice) and a distinct opportunity before final assessment on quantum. No show-cause before the 24.9.2005 provisional assessment; assessment illegal.

LEAD AUTHORITIES *Ashok Kumar v. State of U.P.*

SCJ_644_S · Mahavir Iron Foundry And Another 2023 AII HC

J-22 Section 126 fresh assessment must follow code procedure after remand 1 case

After the earlier assessment was quashed and remitted, no fresh assessment order was passed and the meter was not tested; the Court quashed the Section 126 demand and directed fresh assessment strictly in accordance with the procedure prescribed under the Supply Code, 2005.

SCJ_2858 · Malhotra Ice Factory 2023 All HC

J-23 Uue period 365 days is fallback not default 1 case

Against an assessment made for 365 days, the Court required the two-day plea to be considered particularly in the light of Section 126(5). It did not itself find the period of unauthorised use or recompute the demand. Section 126(5) was invoked and not quoted.

SCJ_3324_S · Amit Kumar Khare 2024 All HC

K. Theft (s.135) & Chapter VIII of the Code 11 principles · 16 case-applications

Civil theft assessment, evidence, acquittal, and the Code's Chapter VIII machinery.

K-01 Theft cannot rest on mere possibility 4 cases

Extends the SCJ-070 / SCJ-273 line from MRI-pattern or mixed-feeder 'possibility of theft' to a restart-inspection that finds an 11 kV cable on the floor and infers that the consumer could connect it to an energised line by artificial means. Without artificial means found on the spot, the s.135(1) proviso presumption is misplaced; a cable in the premises cannot indict on the hypothesis that theft is possible....

LEAD AUTHORITIES *Ashok Kumar & Others v. State of U.P. & Others; Modern Terry Towels Ltd. v. Gujarat Electricity Board*

SCJ_315_S · Kamakhya Steels Pvt. Ltd. & Another 2026 All HC

SCJ_285_S · Sangam Crusher Works & Another 2026 All HC

SCJ_286_S · K.G.N. Stone Crusher Mill & Another 2026 All HC

SCJ_273 · Kamakhya Steels Pvt. Ltd. 2026 All HC

K-02 15 days clear notice mandatory before final theft assessment 2 cases

A notice posted on 03.03.2023 for a 15.03.2023 hearing did not give the 15 days' clear notice the Code requires, so the provisional assessment could not be treated as final.

SCJ_2635_S · Dinesh Chandra 2023 All HC

SCJ_3285_S · Geeta Sharma 2023 All HC

K-03 Clause 8.2x acquittal requires withdrawal of theft assessment 2 cases

A Division Bench of the Allahabad High Court rejected a writ seeking to declare sections 135(2)(a)–(b) and 154(3) of the Electricity Act, 2003 inconsistent with the Cr.P.C., and clause 8.2 of the U.P. Electricity Supply Code, 2005 ultra vires. The 2003 Act is a special statute that borrows Cr.P.C..

SCJ_547_S · Ramesh Chandra Kasera 2024 All HC

SCJ_540 · Vishwas Malik 2024 All HC

K-04 Defective meter not per se theft distinct assessment regime 1 case

Mere slow working of a meter with a lesser reading does not amount to theft. The assessing authority ought to have sent the meter for technical assessment to determine whether there was tampering or a manufacturing defect, instead of hypothetically charging the check-meter difference as theft units.

SCJ_315_S · Kamakhya Steels Pvt. Ltd. & Another 2026 All HC

K-05 Licensee inquiry finding no theft vitiates assessment 1 case

The DVVNL three-member committee found no theft and an erroneous assessment and charge-sheeted three officials; on that stand the revenue assessment was held illegal and quashed.

SCJ_2634_S · Premveer Shah 2024 All HC

K-06 Section 56 2 two year bar inapplicable to theft 1 case

The consumer's plea that recovery beyond two years was barred by Section 56(2) was rejected prima facie: the sub-section addresses default in payment of charges, not theft. Same Section 56(2) cluster as SCJ-001, SCJ-406, SCJ-477.

SCJ_1264 · Joginder Singh 2023 All HC

K-07 Speaking order required for theft assessment 1 case

In this alleged-theft assessment the final bill was issued without a speaking order. That omission, with the want of a hearing date, meant the bill could not stand; the licensee later withdrew it as defective.

SCJ_3285_S · Geeta Sharma 2023 All HC

K-08 Theft demand fresh order 1 case

Where a theft-of-electricity demand is withdrawn by the licensee with a proposal to pass a fresh order after hearing, the High Court issues no further writ direction, save to observe that the fresh order must strictly follow the procedure prescribed by the U.P. Electricity Supply Code, 2005.

SCJ_553 · Ghanendra Singh 2024 All HC

K-09 Theft inspection procedure mandatory leave to appeal refused 1 case

Leave to appeal by the distribution licensee against acquittal on a charge of electricity theft is refused where the trial court found that the mandatory inspection procedure in Chapter VIII of the U.P..

SCJ_336_S · Madhyanchal Vidyut Vitran Nigam Ltd. 2025 All HC

K-10 Theft must be established not presumed 1 case

Independent witnesses were not present at the inspection, and the licensee had been issuing minimum-consumption bills, so it could not be presumed that electricity was being used illegally. The 180-day formula assessment could not rest on that presumption.

SCJ_644_S · Mahavir Iron Foundry And Another 2023 All HC

K-11 Theft uue enforced via code 1 case

A thin node: payment of the s.135-linked assessment and a proposed compounding report to the police station led the consumer to give up the writ; the Court did not itself apply the Code's compounding machinery or decide that it had been followed.

SCJ_277 · Anil Kumar Upadhyay 2026 All HC

L. Recovery of assessment, citations & the 1958 Act 3 principles · 4 case-applications

When recovery may issue, stay pending appeal, tehsil citations, and collection charges.

L-01 Recovery citation quashed and remitted for fresh order 2 cases

The recovery citation was quashed because it rested on the quashed final assessment, and the Executive Engineer was directed to consider the reply and pass a fresh final assessment.

SCJ_3302_S · Radhey Shaym 2023 AII HC

SCJ_3303_S · S.A. Enterprises 2023 AII HC

L-02 Recovery citation kept in abeyance pending fresh objection 1 case

On reopening the assessment for objection, the recovery citation was kept in abeyance for two months or till the authority's final decision, which the citation is to abide.

SCJ_1271 · Dinesh Kumar Gupta 2025 AII HC

L-03 Recovery must rest on final assessment order 1 case

The department's instructions showed that the recovery notice of 28.11.2023 had been issued without any final assessment order. The Court kept recovery in abeyance on 1.3.2024. On 18.4.2024 it recorded that finding. Once a final assessment of 16.4.2024 had been passed, the department treated the notice as withdrawn and the writ was disposed of without a direction on that notice.

SCJ_3319 · Pawan Kumar Sharma 2024 AII HC

M. Fora — CGRF, Ombudsman, Inspector & Lok Adalat 9 principles · 30 case-applications

Who may decide what: consumer fora, ombudsman limits, Electrical Inspector, PLA.

M-01 Clause 7.10 forum ombudsman route for billing grievances 17 cases

An Executive Engineer's communication is amenable to the Consumer Grievance Redressal Forum and Ombudsman under Clause 7.10 of the U.P. Electricity Supply Code, 2005, an efficacious alternative forum that can also examine disputed facts; Article 226 interference is declined..

SCJ_401_S · Guddi Kesarwani 2025 AII HC

SCJ_2223 · Hanuman Singh 2023 AII HC

SCJ_573 · Babita Sharma 2024 AII HC

SCJ_588 · Guddi Kesarwani 2024 AII HC

SCJ_687 · Barnala Steel Industries Ltd. 2024 AII HC

SCJ_350 · Amar Nath Vidya Ashram & Anr. 2025 AII HC

SCJ_384 · Madan Kumar Vishkarma 2025 AII HC

SCJ_475 · Arun Kumar Rai 2025 AII HC

SCJ_372 · Ekta Malviya 2025 AII HC

SCJ_381 · Harishchandra 2025 AII HC

7 more

M-02 Ombudsman cannot direct contrary to act and code 5 cases

An Electricity Ombudsman award that waives tariff charges, or otherwise directs the licensee to act against the Electricity Act, 2003 and the Supply Code, 2005, is without authority and is set aside. Applied via Narinder Chand Hem Raj: no direction against the provisions of the Act and the Code.

LEAD AUTHORITIES *Narinder Chand Hem Raj v. Lt. Governor, Himachal Pradesh; U.P. Power Corporation Ltd. v. Ombudsmen and 2 others* (Writ-C No. 1003603 of 2008, 21.03.2023)

SCJ_490_S · U.P. Power Corp. Ltd. Through Executiv... 2025 AII HC

SCJ_491_S · U.P. Power Corp. Ltd. Through Executiv... 2025 AII HC

SCJ_492_S · U.P. Power Corp. Ltd. Through Executiv... 2025 AII HC

SCJ_493_S · U.P. Power Corp. Ltd. Through Executiv... 2025 AII HC

SCJ_494_S · U.P. Power Corp. Ltd. Through Executiv... 2025 AII HC

M-03 Writ stay of cgrf order at instance of licensee 2 cases

On the licensee's challenge raising questions requiring consideration, the writ court stayed the operation and effect of the impugned CGRF order pending final hearing.

SCJ_2856 · Madhyanchal Vidyut Vitran Nigam Ltd. a... 2023 All HC

SCJ_3276 · Madhyanchal Vidyut Vitran Nigam Ltd. a... 2026 All HC

M-04 Cgrf alternative statutory remedy 1 case

Counsel invoked Clause 4.6(f): an estimate dispute goes first to the authority one level above the sanctioning authority and, if the applicant remains aggrieved, to the Consumer Grievance Redressal Forum. The Court left the petitioners to that remedy without itself referring the dispute or deciding the estimate.

SCJ_3289 · Maya Devi & 6 Others 2023 All HC

M-05 Cgrf cannot grant fresh connection to non consumer on unprayed relief 1 case

The respondent was never substituted as the consumer of the disconnected connection and no prayer for a fresh connection was made; the Court found the CGRF's direction to release a fresh connection raised a question requiring consideration and stayed it.

SCJ_2856 · Madhyanchal Vidyut Vitran Nigam Ltd. a... 2023 All HC

M-06 Cgrf jurisdiction covers billing and tariff disputes 1 case

Whether tariff follows the urban feeder or the village location and agricultural use of a private tube-well was treated as a tariff dispute for the Consumer Grievance Redressal Forum under Clause 7.10, not for decision on writ.

SCJ_3321 · Ravindra Kumar Singh 2024 All HC

M-07 Consumer grievance redressal forum remedy clause 7.10 1 case

The petitioner was permitted to approach the Forum within three weeks with a true attested copy of the order; if he did, the Forum was to decide the complaint within the next eight weeks.

SCJ_3321 · Ravindra Kumar Singh 2024 All HC

M-08 Ombudsman cannot withdraw unappealed cgrf relief 1 case

On a consumer's representation, the Electricity Ombudsman cannot take away part of the relief CGRF had granted when the licensee filed no appeal. Unchallenged CGRF relief is final between the parties (Authorised Officer (Land Reforms)); CGRF on remand is equally barred from withdrawing it.

LEAD AUTHORITIES *Authorised Officer (Land Reforms) v. M.M. Krishnamurthy Chetty*

SCJ_552_S · Prakash Chandra Gupta 2024 All HC

M-09 Writ maintainable where cgrf non functional quorum incomplete 1 case

The Electricity Consumers Grievance Redressal Forum, Meerut being non-functional for want of quorum despite an earlier direction to decide the interim-relief application, the petitioner was permitted to approach the writ court, which granted interim protection.

SCJ_2854 · Apex Dream Homes Pvt. Ltd. 2023 All HC

N. Appeals (s.127) & statutory remedies 3 principles · 4 case-applications

The section 127 appeal, independent judgment, pre-deposit, and the vested right of appeal.

N-01 Recovery of assessment stayed pending s.127 appeal 2 cases

Recovery against the petitioner is stayed for six weeks or until the decision on the fresh appeal, whichever is earlier.

SCJ_329 · Gauri Prasad 2026 AII HC

SCJ_305 · Saurabh Agarwal 2026 AII HC

N-02 Licensee must redirect misaddressed appeal to appellate authority 1 case

A plea that the consumer's representation/appeal was not addressed to the proper authority does not justify inaction. The licensee must inform the consumer or re-direct the papers to the Appellate Authority.

SCJ_329 · Gauri Prasad 2026 AII HC

N-03 Relegation to section 127 appeal on merits limitation not examined 1 case

If the petitioner files the Section 127 appeal within 15 days of 12.12.2023, the appellate forum is to decide it within two months of filing without going into the question of limitation.

SCJ_3300 · Chandraveer 2023 AII HC

O. Writ, alternative remedy & public-law doctrines 34 principles · 140 case-applications

Article 226, Whirlpool exceptions, relegation, laches, clean hands, and costs.

O-01 Relegate to statutory remedy 37 cases

Theft-assessment writ, raising a quantification dispute and an alleged excess deposit, not entertained on merits. Fact disputes do not warrant writ interference; petitioner left to the statutory remedy under the U.P. Electricity Supply Code, 2005.

SCJ_3077 · J.P.C. 2023 AII HC

SCJ_3289 · Maya Devi & 6 Others 2023 AII HC

SCJ_570 · Kalicharan Yadav 2024 AII HC

SCJ_571 · Mewa Lal Ram 2024 AII HC

SCJ_597 · Krishna Murari Gupta 2024 AII HC

SCJ_498 · Vijay Pal Singh 2025 AII HC

SCJ_417 · Chameli Devi 2025 AII HC

SCJ_390 · Sabdar Ali 2025 AII HC

SCJ_409 · Sanjay Chaurasiya 2025 AII HC

SCJ_446 · Skmr Healthcare 2025 AII HC 27 more

O-02 Procedural listing no construction 30 cases

The writ was listed for a supplementary affidavit of the Executive Engineer's Clause 6.5 order and later for a counter, then dismissed for want of prosecution; no portable construction of Clause 6.5 was laid down.

LEAD AUTHORITIES *Apex Dream Homes Pvt. Ltd. v. Managing Director, Paschimanchal Vidyut Vitran Nigam Ltd. and 2 Others*

SCJ_2786 · Shah Battery 2022 AII HC

SCJ_2300 · Ramesh Nath Pandey 2023 AII HC

SCJ_3311 · Vinay Kumar Singh 2023 AII HC

SCJ_3290 · Mr. Bunty & 15 Others 2023 AII HC

SCJ_3292 · Tarang Agrawal 2023 AII HC

SCJ_3288 · Vijendra Singh 2023 AII HC

SCJ_541 · Omwati 2024 AII HC

SCJ_537 · Ashok Kumar 2024 AII HC

SCJ_567 · Jaswant Nagar Cold Storage Pvt Ltd 2024 AII HC

SCJ_554 · Executive Engineer, Dakshinanchal Elec... 2024 AII HC 20 more

O-03 Writ petition dismissed for want of prosecution on non appearance 11 cases

After a 2018 conditional stay of recovery on a Clause 6.8(b)/(c) no-hearing challenge, none appeared for the petitioner even in the revised call on 8.5.2023; the writ was dismissed for want of prosecution, leaving the assessment and recovery undecided.

- SCJ_3191 · Chaudhary Bhoop Singh Cold Storage (P)... 2023 All HC
- SCJ_3099 · Premveer Singh 2023 All HC
- SCJ_851 · Dina Nath Saw 2023 All HC
- SCJ_1990 · Ansal Properties And Infrastructure 2023 All HC
- SCJ_1986 · Vishun Kumar Agrawal & Anr. 2023 All HC
- SCJ_3140 · Rajeev Kumar 2025 All HC
- SCJ_948 · Shri Jai Balaji Rolling Mills Limited 2025 All HC
- SCJ_527 · Gyan Prakash Gupta 2026 All HC
- SCJ_870 · Jai Prakash Dixit 2026 All HC
- SCJ_885 · Modinagar Paper Mills Pvt. Ltd. 2026 All HC
- 1 more

O-04 Alternative remedy relegation 7 cases

The 2007 revised assessment passed by the Executive Engineer (Distribution) was not examined on the merits. The consumer was given four weeks to appeal without pre-deposit (substantial amount already deposited); the authority is to hear and pass a reasoned order within eight weeks of filing.

- SCJ_375_S · Chakradhari Cold Storage Pvt. Ltd. 2025 All HC
- SCJ_478_S · R.D. Ice & Cold Storage (P) Ltd. 2025 All HC
- SCJ_3314 · Akhilesh Patel 2023 All HC
- SCJ_384 · Madan Kumar Vishkerma 2025 All HC
- SCJ_400 · Akanksha Steels Pvt. Ltd. 2025 All HC
- SCJ_398 · Nagendra Singh Gautam 2025 All HC
- SCJ_305 · Saurabh Agarwal 2026 All HC

O-05 Alternate remedy clause 7.10 4 cases

The writ challenging the PuVVNL Executive Engineer's order was not decided on merits because counsel for the petitioner stated that an efficacious Clause 7.10 CGRF remedy was available; the petition was disposed of in terms of KSS Electrodes.

LEAD AUTHORITIES *M/s KSS Electrodes Private Limited v. State of U.P. and 2 others*

- SCJ_3251 · Lallan Pandey 2023 All HC
- SCJ_3298 · Uflex Limited 2023 All HC
- SCJ_3320 · Madan Kumar Vishkerma 2024 All HC
- SCJ_3321 · Ravindra Kumar Singh 2024 All HC

O-06 Costs and officer accountability for procedural harassment 4 cases

Repeated procedural violations causing consumer harassment drew a Rs. 10,000 cost on the Department recoverable from the erring Executive Engineer, restoration of the disconnected supply, and a recorded policy of recovering awarded costs from non-complying officers.

- SCJ_2635_S · Dinesh Chandra 2023 All HC
- SCJ_3285_S · Geeta Sharma 2023 All HC
- SCJ_3286_S · Sardar Singh 2023 All HC
- SCJ_3282 · Vikas Yadav 2023 All HC

O-07 Clause 6.5 alternate remedy 3 cases

The recovery citation of 18.05.2023 and the prayer to correct the bills were not examined. The petitioner was directed to apply under Clause 6.5 within 15 days, for a decision preferably within six weeks, with no coercive steps until that decision and no protection if the application is not filed.

- SCJ_3313 · Maheshwari Flour Mills, Sitapur 2023 All HC
- SCJ_3306 · P.S. Cold Storage (A Unit of Taj Dairy... 2023 All HC
- SCJ_3297 · Sarasth Propbuild Pvt. Ltd. 2023 All HC

O-08 Clause 6.5 alternate remedy to writ 3 cases

Writ dismissed at the stage it was called because Permanent Lok Adalat cases on the same bills were pending; liberty reserved to clauses 6.5 or 6.8.

SCJ_2685 · Julfkar 2023 All HC

SCJ_3316 · Karan Singh 2024 All HC

SCJ_3299 · Shankar Lal 2025 All HC

O-09 Disputed questions of fact not adjudicable under article 226 3 cases

On 12.12.2023 the Court, after perusing the writ petition, the inspection report of the videography, and the orders, held that disputed questions of fact were involved and declined to try them.

SCJ_3291_S · Vishanu 2023 All HC

SCJ_3300 · Chandraveer 2023 All HC

SCJ_363 · Laxmi Chaurasiya 2025 All HC

O-10 Final assessment order relegates assessee to section 127 appeal 3 cases

A writ challenging a final assessment under s.126 of the Electricity Act, 2003 read with the Electricity Supply Code, 2005 is not examined on merits where the statutory appeal under s.127 is available and undisputed. The consumer is relegated to that remedy and the petition is disposed of.

SCJ_3077 · J.P.C. 2023 All HC

SCJ_502 · Suman Shukla 2025 All HC

SCJ_599 · Keshari Nandan Rai 2024 All HC

O-11 Long pending writ consigned to record no cause of action survives 3 cases

A years-old writ on the warning list of oldest pending cases, with none appearing for the petitioner even in the revised call and no surviving cause of action on the record, was consigned to record and disposed of, with liberty to seek recall, variation or modification.

SCJ_3161 · Bundelkhand University Jhansi Thru' It... 2025 All HC

SCJ_2190 · Ganga Dairy 2025 All HC

SCJ_3304 · Smilan Agro Industries & 2 Others 2025 All HC

O-12 Writ dismissed as infructuous with liberty to move afresh 3 cases

Writ seeking quash of a 22 February 2010 refusal of an electric connection, dismissed as infructuous when nobody appeared for the petitioner. An interlocutory 20 July 2010 order had directed the licensee to consider the application subject to payment of a predecessor's Rs..

SCJ_785 · Rajeev Sinha 2023 All HC

SCJ_565 · Ram Naresh @ Ram Rahees Singh 2024 All HC

SCJ_884 · Writ challenging Supply Code vires dis... 2024 All HC

O-13 Writ dismissed for want of prosecution interim vacated 3 cases

After a 2012 without-prejudice stay of an additional-security demand under Section 47(2) / Clause 4.20(l) on a pre-payment-meter undertaking, the writ was dismissed for want of prosecution when none appeared even in the revised call, and the interim order was vacated, leaving the Section 47(5) and ultra vires points undecided.

SCJ_3123 · Shah Concast Pvt. Ltd. 2023 All HC

SCJ_3071 · Ashok Kumar Dureja 2025 All HC

SCJ_2207 · Kanhaiya Beverages Pvt. Ltd. & Another 2026 All HC

O-14 Approbate and reprobate bars selective repudiation 2 cases

The petitioners had acceded to the bill of 24 October 2018 for Rs 1,13,59,073, sent on the footing that earlier bills were erroneous, and had paid Rs 69,56,667. They could not thereafter say that disconnection ought to have been effected as per the communication of 18 June 2018 so that further bills should not have been generated. The writ was dismissed and the recovery was left standing.

SCJ_3295 · Krishi Utpadan Mandi Samiti & Another 2023 All HC

SCJ_302 · Spencer Retail Limited 2026 All HC

O-15 Assessment demand notices relegated to representation without merits 2 cases

The Court did not decide whether the inspection report was served under Clause 8.1(a)(vi), and did not quash or uphold the demand notice of 11.01.2023. Because no final assessment had been passed, and the service question was primarily factual, the writ was disposed of by a comprehensive representation.

SCJ_3322 · Samay Singh 2024 All HC

SCJ_3222 · Amit Shaker Amist 2026 All HC

O-16 Disputed bill relegated to cgrf clause 7.10 2 cases

A monthly billing difference said to exceed Rs. 5,000, arising from a shift from rural to urban tariff on a private tube-well, was left to the Forum under Clause 7.10, to be decided in accordance with law within eight weeks of a complaint filed within three weeks.

SCJ_3320 · Madan Kumar Vishkerma 2024 All HC

SCJ_3321 · Ravindra Kumar Singh 2024 All HC

O-17 Own wrong maxim 2 cases

Applied against a distribution licensee: the procedural prerequisite (amending the agreement) is deemed waived within a reasonable time of the consumer's request.

LEAD AUTHORITIES *M.K. Shah Engineers & Contractors v. State of M.P.*; *Kusheshwar Prasad Singh v. State of Bihar*; *Mrutunjay Pani v. Narmada Bala Sasmal*

SCJ_406 · Managing Director, D.V.V. Nigam Ltd. &... 2025 All HC

SCJ_001 · Indian Oil Corporation Ltd. 2024 All HC

O-18 Whirlpool exceptions to alternative remedy bar 2 cases

Extreme violation of natural justice (no show-cause before the provisional assessment) makes the writ maintainable; the consumer is not relegated to a Section 127 appeal.

LEAD AUTHORITIES *Executive Engineer v. M/s Sri Seetaram Rice Mill*

SCJ_644_S · Mahavir Iron Foundry And Another 2023 All HC

SCJ_380_S · Satyam Shukla 2025 All HC

O-19 Alternate remedy section 127 appeal bars writ 1 case

Challenge to recovery of the 2004 unauthorised-use assessment and to insistence on a bank guarantee of that amount for additional load was left to the pending appeal before the Divisional Commissioner rather than decided on the writ.

SCJ_3077 · J.P.C. 2023 All HC

O-20 Alternative remedy not a bar after long pendency 1 case

The licensees' Clause 6.5(b) maintainability objection, even if technical, will not undo a CGRF billing order after nearly twelve years from the 2013 dispute when the order is unassailable on merits.

SCJ_406 · Managing Director, D.V.V. Nigam Ltd. &... 2025 All HC

O-21 Alternative remedy relegation section 127 1 case

The writ was disposed of by permitting the petitioner, if so advised, to approach the appellate forum under Section 127, without granting or refusing the underlying electricity relief.

SCJ_3300 · Chandraveer 2023 All HC

O-22 Alternative remedy section 127 appeal 1 case

The licensee relied on Kapil Gupta to say that against the final assessment the petitioner had a Section 127 appeal. The 26.9.2018 Bench recorded the contention, found a hearing defect on the papers, and listed the writ for consideration rather than relegating; the point was never decided after dismissal for want of prosecution.

LEAD AUTHORITIES *Kapil Gupta v. U.P. Power Corporation Ltd.*

SCJ_3191 · Chaudhary Bhoop Singh Cold Storage (P)... 2023 All HC

O-23 Authority defying prior writ order show cause exemplary cost 1 case

The Executive Engineer rejected the application in defiance of the Court's earlier binding order; he was directed to appear personally and show cause why the petition should not be allowed with exemplary cost.

SCJ_2217_S · Belani Sugars LLP 2023 All HC

O-24 Bill dispute requiring facts relegated to competent authority 1 case

The Court recorded a prima facie factual dispute about liability for fixed charges during the interruption and held that the statutory forum should examine it before the writ court exercises discretion.

SCJ_3298 · Uflex Limited 2023 All HC

O-25 Cgrf 7.10 alternate remedy 1 case

The challenge to the 31.07.2023 rejection, under Clause 6.5(b)(iii), of the claim that fixed charges were not payable while supply was off because a third party damaged the cable was not decided on the writ. The petitioner must approach the Consumer Grievance Redressal Forum, Company Level, at Meerut under Clause 7.10(iii). The Forum at NOIDA was held to lack jurisdiction over this grievance.

SCJ_3298 · Uflex Limited 2023 All HC

O-26 Contempt application infructuous on relegation to civil court 1 case

Once the substantive contempt direction of 29.8.2022 was stayed on appeal and the special appeal (22.3.2023) relegated the applicant's grievance to the Civil Court, the contempt application was rendered infructuous and dismissed.

SCJ_2222_S · Amit Kumar 2023 All HC

O-27 Contempt compliance with a direction to dispose of a new connection appl 1 case

A civil contempt application alleging non-compliance with a writ order directing the electricity authority to dispose of the applicant's new-connection application after hearing an objector was dismissed on a finding of compliance..

SCJ_1570 · Tulsi Castle 2023 All HC

O-28 Contempt does not survive setting aside of underlying order 1 case

The writ court's order of 23.5.2023 having been set aside by the Supreme Court, the contempt application founded on its disobedience was dismissed as no case for contempt survived.

SCJ_2228 · Apex Dream Homes Pvt. Ltd. 2023 All HC

O-29 Contempt jurisdiction no roving inquiry disputed facts to appropriate forum 1 case

Applying Dr. U.N. Bora, the contempt court would conduct no roving inquiry into the disputed tenancy question; disputed questions of fact belong to the appropriate forum — here, ultimately, the Civil Court to which the matter was relegated.

LEAD AUTHORITIES *Dr. U.N. Bora v. Assam Roller Flour Mills Association*

SCJ_2222_S · Amit Kumar 2023 All HC

O-30 Contempt of connection direction dues on brother s connection on same la 1 case

Contempt of a writ directing an electricity connection within four weeks is not made out where the licensee's later speaking order refuses the connection under Supply Code paragraphs 4(i) and 4(ii) (dues on the applicant's brother's connection on the same land); the writ-court concession was only to give connection in...

SCJ_337 · S.K. Rice Mill 2025 All HC

O-31 Contempt satisfied once directed representation is decided 1 case

The writ direction being only to decide the applicant's representation, its decision on 12.11.2021 fully complied with the order, and no contempt was made out.

SCJ_2223 · Hanuman Singh 2023 All HC

O-32 Writ consigned for no surviving cause of action with liberty to recall 1 case

With the petitioner absent even in the revised call and no cause of action surviving on the record, the writ was disposed of and consigned to record, with liberty to seek recall.

SCJ_2641 · Mohammad Nayeem Khan 2025 All HC

O-33 Writ dismissed as infructuous entire amount deposited 1 case

Counsel for the Discom stated that the petitioner had deposited the entire amount and that the writ had become infructuous. The petitioner's counsel agreed. The Division Bench dismissed the petition. It reserved no liberty to move afresh and did not decide the notice dated 20.4.2024 or the assessment.

SCJ_3317 · Pravesh Kumar 2024 All HC

O-34 Writ will not adjudicate bill if undisputed part unpaid 1 case

A surcharge / Clause 6.5(b)(i) grievance will not be examined in writ if the consumer refuses to deposit the billed amount less the disputed surcharge, as previously directed.

SCJ_281 · Parvati Devi 2026 All HC

P. Criminal process, compounding & s.482 8 principles · 25 case-applications

Arrest safeguards, FIR, compounding, summoning, and inherent-power quashing.

P-01 S.135 arrest safeguards and compounding remedy 16 cases

A cognizable Section 135 FIR is left standing. Because the offence is punishable with seven years or less, arrest is not mechanical: notice under Section 35 BNSS, cooperation in investigation, and arrest only on credible material with reasons, following Arnesh Kumar and Md. Asfak Alam. This order applied the arrest-safeguard limb only; it did not mention compounding under the Supply Code.

LEAD AUTHORITIES *Arnesh Kumar v. State of Bihar*; *Md. Asfak Alam v. State of Jharkhand*

SCJ_547_S · Ramesh Chandra Kasera 2024 AII HC

SCJ_376_S · Dev Cold Storage Pvt. Ltd. 2025 AII HC

SCJ_591 · Ram Prasad Vishwakarma 2024 AII HC

SCJ_538 · Sunil Pandey 2024 AII HC

SCJ_464 · Anil Suhala 2025 AII HC

SCJ_344 · Udit Narayan 2025 AII HC

SCJ_394 · Sheelu 2025 AII HC

SCJ_340 · Anuradha 2025 AII HC

SCJ_426 · Petitioner 2025 AII HC

SCJ_427 · Avanish Kumar 2025 AII HC

6 more

P-02 Section 482 sparingly at pre trial stage 3 cases

Section 528 BNSS treated as the inherent-power vehicle. The Court restated that s.482 Cr.P.C. at the pre-trial stage is used sparingly, not to appreciate evidence or try disputed defences, and dismissed the application because the FIR, statements and charge-sheet disclosed a prima facie ss.409/420 embezzlement case after departmental enquiry. Same cluster as SCJ-173, SCJ-142.

LEAD AUTHORITIES *State of Haryana v. Bhajan Lal*; *M/s Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra*; *R.P. Kapur v. State of Punjab*

SCJ_539 · Syed Avesh Ahmad 2024 AII HC

SCJ_343 · Natthi Prasad 2025 AII HC

SCJ_2556 · Islam Khan 2023 AII HC

P-03 Compounding fee does not extinguish civil consumption dues 1 case

The licensee pressed this point for maintainability, through the observation in Bhupendra Singh that a compounding fee for theft is altogether distinct from unauthorised use for which the consumer remains liable as per assessment, with Sharvan Kumar Jain said to be to the same effect. The Court did not adopt the observation. It called for a response, and the writ was dismissed as withdrawn.

LEAD AUTHORITIES *Bhupendra Singh @ Bhupendra Singh Chauhan v. State of U.P. and 2 Others*; *Sharvan Kumar Jain v. State of U.P. & 2 Others*

SCJ_3293 · Vishal Chawla 2023 AII HC

P-04 Consumer forum lacks jurisdiction over s.126 s.135 140 matters 1 case

Applied as the converse: a billing-arrears complaint before CGRF is maintainable because it is not a s.126 assessment or a s.135–140/150 complaint. Anis Ahmad was cited by the petitioners at admission against a 'District Consumer Forum'; the 2025 Court named the principle without the case name.

LEAD AUTHORITIES *U.P. Power Corporation Ltd. vs. Anis Ahmad*

SCJ_406 · Managing Director, D.V.V. Nigam Ltd. &... 2025 AII HC

P-05 First due on billing not consumption 1 case

The explanation to Clause 6.15(b) was applied: inspection-based charges become first due from the due date of the bill, which must be given within two billing cycles, so a 51-month back-assessment of overload cannot stand.

SCJ_477_S · Executive Engineer, Dakshinanchal Vidy... 2025 AII HC

P-06 New connection released on undertaking dues as first charge 1 case

Pending decision, the new connection is released on the applicant's undertaking that the prior consumer's disputed dues be a first charge on the property, without prejudice to the licensee.

SCJ_2211 · M.P. Singh Foundation 2023 AII HC

P-07 S.135 1 clauses are definitional not separate offences 1 case

s.135(1)(a)–(e) define theft and share one punishment; omitting the sub-clause from the FIR/charge-sheet/cognizance is not fatal if the narration is complete.

SCJ_278 · Satish Kumar Bharti alias Chhotu 2026 AII HC

P-08 S.135 1A 24 hour FIR is mandatory 1 case

The 24-hour police-complaint rule in s.135(1-A) second proviso, reinforced by Clause 8.2 of the Code and s.57 consequences, is mandatory; a theft FIR lodged four days after inspection vitiates the criminal case. Indresh Patel (DB, directory) is treated as per incuriam; Varun Kumar Yadav (coordinate Bench; SLP pending) is followed.

LEAD AUTHORITIES *Varun Kumar Yadav v. State of U.P. & Others; Indresh Patel @ Indreshwar Singh v. State of U.P. & 4 Others; Dr. Arun Kumar v. Nagar Nigam, Bareilly*

SCJ_278 · Satish Kumar Bharti alias Chhotu 2026 AII HC

Q. Adjacent & miscellaneous 43 principles · 56 case-applications

Doctrines that sit beside the Code: arbitration, departmental inquiry, and residual.

Q-01 Apply under supply code consider in accordance with law 3 cases

Counsel for the licensee stated that an application under the Electricity Supply Code, 2005, with an indemnity bond and the other prescribed requirements, would be considered strictly in accordance with law. The Court left the claim to that fresh application and did not itself apply the Code.

SCJ_3251 · Lallan Pandey 2023 AII HC

SCJ_3318 · Maa Durga Dhaba 2025 AII HC

SCJ_3284 · Mukhtar Ahmad 2023 AII HC

Q-02 Licensee demand on paid bills requires shown provision 3 cases

After due discharge of bills, a later demand on alleged licensee mistake is confined to Section 56 as read in Rahamatullah Khan: additional demand may be raised, disconnection may not, and the demand cannot be progressively increased. The licensee must particularise the mistake and calculation, then sue if unpaid.

LEAD AUTHORITIES *Assistant Engineer, Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan alias Rahamjulla*

SCJ_283_S · Om Food Manufacturing Center 2026 AII HC

SCJ_328_S · Ghanshyam 2026 AII HC

SCJ_284 · Krishna Kant Dubey 2026 AII HC

Q-03 Natural justice in departmental inquiry 3 cases

In a major-penalty inquiry charges are not self-proving. The establishment must lead documentary and oral evidence through a Presenting Officer before an impartial inquiry committee; want of named witnesses in the charge-sheet, or a plea that documents were not disputed as to genuineness, does not relieve that burden when the delinquent has denied the charges.

LEAD AUTHORITIES *State of Uttar Pradesh v. Saroj Kumar Sinha; Roop Singh Negi v. Punjab National Bank; State of Uttaranchal v. Kharak Singh*

SCJ_548 · Umesh Chandra Verma 2024 AII HC

SCJ_549 · Tarun Kumar Pathak 2024 AII HC

SCJ_017 · Dharendra Kumar Chaudhary 2024 AII HC

Q-04 Representation to be decided in accordance with law 3 cases

The writ was disposed of by permitting a representation under Clauses 4.3(g) and (h) to the Executive Engineer (Prescribed Authority), Pratapgarh, who must call both brothers, verify the will and the partition, decide in accordance with law, and direct payment of the electricity dues within four weeks of the certified copy and the representation.

SCJ_3314 · Akhilesh Patel 2023 All HC

SCJ_3322 · Samay Singh 2024 All HC

SCJ_3222 · Amit Shaker Amist 2026 All HC

Q-05 Amended clause 4.9 multi point release mandate 2018 2 cases

The licensee relied on the 10.08.2018 amendment of Clause 4.9 requiring multiple-point release for multistoried buildings and the other specified categories; the Court found the CGRF's direction for a single/individual fresh connection prima facie contrary and stayed it pending consideration.

SCJ_2856 · Madhyanchal Vidyut Vitran Nigam Ltd. a... 2023 All HC

SCJ_3290 · Mr. Bunt & 15 Others 2023 All HC

Q-06 Assessment order quashed and remitted for hearing 2 cases

The non-speaking order was quashed and the objections were remitted to the Assessing Officer to be decided in accordance with the earlier speaking-order direction.

LEAD AUTHORITIES *Vikas Yadav v. State of U.P. and Another*

SCJ_2206_S · Prem Steels Pvt. Limited 2023 All HC

SCJ_3282 · Vikas Yadav 2023 All HC

Q-07 Officer accountability for defying repeated judicial directions 2 cases

The Executive Engineer who reiterated a set-aside assessment order in defiance of the repeated directions of the appellate authority and the writ court was required to file a personal affidavit and show cause; he tendered an unconditional apology, which was recorded.

LEAD AUTHORITIES *Vikas Yadav v. State of U.P. and Another*

SCJ_2206_S · Prem Steels Pvt. Limited 2023 All HC

SCJ_3282 · Vikas Yadav 2023 All HC

Q-08 Owner consent not a bar to supply 2 cases

The Court followed the Division Bench holding that an occupier has a legal right to a connection and that the licensee cannot refuse supply solely for want of the owner's consent, and applied it to a refusal based on an ownership dispute and want of present title.

LEAD AUTHORITIES *Chandu Khamaru v. Smt. Nayan Malik; Division Bench judgment in Writ - C No. 28295 of 2014*

SCJ_3296_S · Anil Kumar Singh 2023 All HC

SCJ_3308_S · Om Heem Enterprises 2023 All HC

Q-09 Set aside assessment is non est fresh reasoned order required 2 cases

The assessing authority impermissibly reiterated the final assessment order already set aside by the appellate authority; a set-aside assessment cannot be revived and a fresh order following the appellate directions and the Supply Code procedure is required.

SCJ_2206_S · Prem Steels Pvt. Limited 2023 All HC

SCJ_351_S · S. Milan Agro Industries & 2 Others 2025 All HC

Q-10 Acquiescence cuts both ways 1 case

Bars the consumer's refund of charges paid without demur and the licensee that only raised bills, never pursuing statutory recovery (s.52 noted).

SCJ_001 · Indian Oil Corporation Ltd. 2024 All HC

Q-11 Act and code sufficient no fresh guidelines needed 1 case

The Court declined the State's suggestion to have the Ministry frame fresh guidelines, holding that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are sufficient and that separate circulars for every action are not always desirable.

SCJ_2215_S · Devpati Devi 2024 All HC

Q-12 Anticipatory bail electricity official fraud prosecution 1 case

Not a Supply Code merits case — an anticipatory bail order under s.438 Cr.P.C. granted to a public-servant electricity official (an Executive Engineer/Assistant Engineer-level officer who had ordered permanent disconnection of a tubewell electricity connection) facing prosecution under IPC ss.420/467/468/471/120B

SCJ_131 · Sunil Kumar 2024 All HC

Q-13 Audi alteram partem for demand assessment orders 1 case

CGRF's 26.9.2016 order on the check-meter slow-meter complaint was set aside for want of proper opportunity of hearing as well as for non-consideration of Clause 5.6(e). Fresh decision after hearing directed.

SCJ_552_S · Prakash Chandra Gupta 2024 All HC

Q-14 Charge follows actual use 1 case

Liability for system-upgradation (the system-loading charge) accrues only on actual consumption; a prospective consumer who never draws supply bears no share of it.

SCJ_002 · Suman Engineering and Chemicals Pvt. L... 2023 All HC

Q-15 Clause 4.14g paid final bill bars further demand 1 case

A 2016 receipt stamped 'P.D. Final Amount' for Rs 1,696, undenied and consistent with the licensee's admission that records are missing, is treated as Clause 4.14(g) termination and no-dues. A 2025 demand of Rs 1,66,916 on that connection is quashed; missing records cannot revive billing.

SCJ_328_S · Ghanshyam 2026 All HC

Q-16 Clause 4.9a individual owner lt connection not barred by builder non application 1 case

Prima facie, clause 4.9(a) as quoted in 2013 required the licensee to sanction an individual owner's L.T. application even though the builder had not applied or deposited cost for single-point supply to the multi-storied building; the view was interlocutory and never made final.

SCJ_3140 · Rajeev Kumar 2025 All HC

Q-17 Connection transfer on change of ownership under clause 4 44 1 case

The petitioner's application to transfer the connection after acquiring ownership by family settlement and mutation was held to fall under Clause 4.44, not the new-connection provision Clause 4.4(a).

SCJ_2639 · Rakhi Arora & Another 2023 All HC

Q-18 Contested connection transfer decided by authority after hearing both sides 1 case

The objection of the former connection-holder was relegated to the competent authority to decide on merits after hearing both the petitioners and the complainant, rather than being decided by the writ court.

SCJ_2639 · Rakhi Arora & Another 2023 All HC

Q-19 Cross subsidisation of franchisee input rate not per se unlawful 1 case

Cross-subsidisation of a franchisee's below-bulk-supply input rate by a licensee's other-area consumers is a legitimate feature of input-based franchisee models addressing high-loss areas, and is not by itself a ground to invalidate the arrangement absent evidence of illegality or misrepresentation.

SCJ_136 · Torrent Power Limited 2025 SC

Q-20 Demand disproportionate to sanctioned load prima facie fictitious 1 case

1296 units billed in 24 days on a 1 KW connection with no excess load was held, prima facie, impossible and indicative of a fictitious demand requiring explanation by the licensee.

SCJ_2641 · Mohammad Nayeem Khan 2025 All HC

Q-21 Electricity dues not automatically a secured interest 1 case

Electricity dues are not automatically a 'secured interest'/first charge under the IBC merely by virtue of a Supply Code recovery-as-arrears-of-land-revenue mechanism; secured-creditor status depends on whether a security interest was actually created (by contract clause or operation of law) and, if so, the claim is processed within the s.53 waterfall, not outside/above the IBC.

LEAD AUTHORITIES *State Tax Officer v. Rainbow Papers Ltd.*

SCJ_100 · Paschimanchal Vidyut Vitran Nigam Ltd. 2023 SC

Q-22 Electricity dues statutory character clearance condition not unreasonable 1 case

Electricity dues are statutory, not purely contractual; insisting on clearance of a premises' arrears as a condition of a fresh connection is not arbitrary or unreasonable.

LEAD AUTHORITIES *Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys (P) Ltd.; Hyderabad Vanaspathi Ltd. v. A.P. State Electricity Board*

SCJ_271 · RKG Industries LLP 2023 All HC

Q-23 Excess electricity duty not adjustable against electricity charges 1 case

A plea that Rs 7.65 crore of excess electricity duty lay with the licensee did not support interference. The Court held that such excess cannot be adjusted towards electricity charges, and noted that the Executive Engineer's order of 30.07.2021, confining adjustment to future electricity duty, was not under challenge.

SCJ_3315_S · Jai Jagdamba Metalloys Ltd. 2023 All HC

Q-24 Final order must consider consumer objections 1 case

The final assessment was quashed because respondent no. 3 did not allude to the specific plea that unauthorised use lasted only two days, and rejected the representation as bereft of evidence. A specific objection must be considered. The matter was remitted for a fresh order after hearing.

SCJ_3324_S · Amit Kumar Khare 2024 All HC

Q-25 Franchisee is agent of licensee not directly regulable 1 case

Establishes that a distribution franchisee under s.2(27)/seventh proviso to s.14 is the licensee's agent, insulated from direct ERC regulatory oversight; an ERC's s.128 investigation power reaches only the licensee, requiring a concrete showing of licence/Act non-compliance rather than a bare performance review — a significant precedent for this corpus's regulatory-architecture cluster (alongside SCJ-130's...

LEAD AUTHORITIES *City Corporation Limited v. Maharashtra Electricity Regulatory Commission and Anr.*

SCJ_136 · Torrent Power Limited 2025 SC

Q-26 Gift deed does not wipe electricity dues application processed after cle 1 case

A donee under a gift deed from her father sought quashing of the licensee's 28.04.2025 order and a mandamus for a fresh connection without paying remaining electricity dues on the house. Held, mere execution of a gift deed does not exclude liability for those dues..

SCJ_444 · Kirti Kushwaha 2025 All HC

Q-27 Government shareholding does not make licensee dues government dues 1 case

A distribution licensee's dues do not automatically rank as 'government dues' under s.53(1)(e)/(f) IBC merely because of state shareholding in the licensee; the licensee remains a distinct juristic entity in a liberalised, privately-contestable sector.

LEAD AUTHORITIES *Municipal Commissioner of Dum Dum Municipality v. Indian Tourism Development Corporation*

SCJ_100 · Paschimanchal Vidyut Vitran Nigam Ltd. 2023 SC

Q-28 High court supervision of code assessment non compliance 1 case

Faced with recurring non-compliance and unhonoured past assurances, the Court impleaded the U.P. Power Corporation through its Managing Director and required affidavits, yielding corporation-wide guidelines, training and a disciplinary committee.

SCJ_2634_S · Premveer Shah 2024 All HC

Q-29 Independent lab testing only if conclusion rests on test report 1 case

Clause 5.6(c)(iii)'s independent-laboratory option is triggered only when the tampering/defect finding is derived from a test report; it has no application where tampering is visibly patent at inspection, distinguishing Mohd. Sagir and Amrawati Devi (ambiguous, test-report-dependent tampering).

LEAD AUTHORITIES *Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.*; *K.C. Ninan v. Kerala State Electricity Board & Ors.*

SCJ_064 · Santosh Preservation Pvt. Ltd. & Anr. 2023 All HC

Q-30 Interest cannot inflate frozen balance during complied interim order 1 case

Where an interim order operated in the consumer's favour and its conditions were complied with, a 16% interest demand under Clause 8.1(c)(ii) cannot swell the balance fixed at the dismissal of the earlier writ; the inflated demand is unjustified.

SCJ_2212 · Narendra Kumar Gupta 2024 All HC

Q-31 ipc 405 406 entrustment 1 case

Not a Supply Code / electricity case. A Section 482 Cr.P.C. petition to quash a criminal complaint of breach of trust (IPC ss.406/405) against the former Executive Chairman of a retail chain over an unpaid food-supply bill

SCJ_044 · Kishore Biyani 2024 All HC

Q-32 Law as of application date governs 1 case

Pending energy writ: counter in four weeks, rejoinder in two weeks, list after six weeks. Petitioner may meanwhile apply under cl. 4.45 of the U.P. Electricity Supply Code, 2005, to be considered as per law if possible before the next date.

SCJ_514 · Rinku Verma 2025 All HC

Q-33 Licensee bears burden of proving retained charges 1 case

Deposits taken as part of the estimate are refundable unless the licensee proves the actual expenditure reasonably incurred; unproved heads must be refunded.

SCJ_002 · Suman Engineering and Chemicals Pvt. L... 2023 All HC

Q-34 Managing director vicariously liable for officials code violations 1 case

Violation of the Managing Director's undertaking to the Court to follow the Code is civil contempt (Section 2(b), Contempt of Courts Act, 1971), and the Managing Director is vicariously liable for officials' violations of law under his supervision and control.

SCJ_2215_S · Devpati Devi 2024 All HC

Q-35 Mandamus cannot override statutory distribution scheme 1 case

Mandamus for a direct connection is refused where the Code as amended already supplies the conversion path (51% of single-point consumers applying together) and the petitioners do not satisfy it.

SCJ_355_S · Mohammad Afsar Khan And Another 2025 All HC

Q-36 One time settlement finality 1 case

Writ disposed of by consent on a fixed sum (Rs. 1,00,000) in full and final satisfaction of the claim, upon deposit of which the entire proceedings stand dropped.

SCJ_2212 · Narendra Kumar Gupta 2024 All HC

Q-37 Order recalled when passed on wrong footing without hearing 1 case

The earlier order dated 03.11.2023, which had proceeded under Clause 4.4(a) as if the case were for a new connection, was recalled so that the contested transfer could be heard on merits.

SCJ_2639 · Rakhi Arora & Another 2023 All HC

Q-38 Pc act s.7 bail without comment on merits 1 case

A Dakshinachal Vidyut Vitaran Nigam Junior Engineer, sole accused in a Section 7 Prevention of Corruption Act trap over an alleged Rs. 10,000 demand to submit a low estimate for a new 2 kW commercial connection, was enlarged on bail without comment on the merits. The Court treated the U.P. Power Corporation Ltd. order of 19.3.2023, clean antecedents, the small recovery, government service, and the want of any...

SCJ_3281 · Ajit Pandit 2023 All HC

Q-39 Procedural consider in accordance with law 1 case

The Court did not grant or refuse the new connection and did not set aside the 11.09.2021 rejection for want of the landlord's no-objection. It disposed of the writ: if the petitioner moves an appropriate application strictly in accordance with law within two weeks, the department is to consider it within a further three weeks.

SCJ_3284 · Mukhtar Ahmad 2023 All HC

Q-40 Recovery withdrawal fresh assessment under code 1 case

On the department stating that the demand on the provisional-assessment notice was withdrawn and that a fresh opportunity to object would be given before a final assessment, the Court disposed of the writ with liberty to follow the procedure in the U.P. Electricity Supply Code, 2005, and directed that the fresh assessment not be influenced by its observations.

SCJ_3326_S · Munna Lal 2024 All HC

Q-41 Recovery withdrawn fresh supply code order 1 case

After the Managing Director stated that the impugned proceedings had been withdrawn and that the department would proceed afresh under the Supply Code, 2005 and the Electricity Act, 2003, the writ was disposed of as the grievance stood redressed, with liberty to pass a fresh order strictly in accordance with law.

SCJ_3325_S · Nishu Devi 2024 All HC

Q-42 S.11 confined to existence of arbitration agreement 1 case

A Section 11 court does not decide whether a Supply Code penalty must go to the Clause 7.10 CGRF/Ombudsman; it only asks whether an arbitration agreement exists, leaving the Code-forum objection to the arbitrator.

LEAD AUTHORITIES *M/S Mayavati Trading Pvt. Ltd. v. Pradyut Deb Burman*; *Duro Felguera, S.A. v. Gangavaram Port Ltd.*; *GOQII Technologies Pvt. Ltd. v. Sokrati Technologies Pvt. Ltd.*

SCJ_274 · Ambuja Cements Limited 2026 All HC

Q-43 Withdrawal with liberty to supply code authority 1 case

Writ petition dismissed as withdrawn, with liberty to the petitioner to approach the authority under the Uttar Pradesh Electricity Supply Code in accordance with law. The Court did not examine the electricity dispute on merits.

SCJ_403 · Nisar Ahamad 2025 All HC

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